



CONTRACT OF CARRIAGE
INCLUDES GUEST SERVICE PLAN &
TARMAC DELAY PLAN

UPDATED AS OF OCTOBER 30, 2025

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1. DEFINITIONS

- A. **Assistive Device** means any piece of equipment that assists a guest with a disability to hear, see, communicate, maneuver, or perform other functions of daily life, and may include medical devices and medications.
- B. **Guest with Disabilities** means any individual who has a physical or mental impairment that, on a permanent or temporary basis, substantially limits one or more major life activities, has a record of such an impairment, or is regarded as having such an impairment.
- C. **Denied Boarding** is used in Spirit's Contract of Carriage to refer to a situation in which more guests hold confirmed reservations than there are seats available (oversold flight) for a specific flight on a specific date. In such situation, guests may be voluntarily or involuntarily denied boarding in accordance with [section 9](#) herein.
- D. **DOT** means U.S. Department of Transportation.
- E. **FAA** means U.S. Federal Aviation Administration.
- F. **"Spirit First," "Premium Economy," and "Value"** are travel options that may be available for purchase. See [the onboard experience section of Spirit's website \(https://www.spirit.com/s/onboardexperience\)](https://www.spirit.com/s/onboardexperience) for details.
- G. **IATA** means International Air Transport Association.
- H. **Montreal Convention** means the Convention for the Unification of Certain Rules for International Carriage by Air, executed in Montreal, on May 28, 1999, including any amendments thereto.
- I. **No-Show** means the automatic cancellation of a guest's reservation upon such guest failing to either (i) check-in for such guest's flight, (ii) board such guest's flight, or (iii) travel on any flight segment of a booked itinerary, in each instance within the required times in accordance with [section 2.4](#) herein. The automatic cancellation will apply to all subsequent flights, including return flights, on the itinerary. Presentation of a boarding pass by someone other than the named guest renders the reservation void and the reservation will then be treated as a No-Show for all purposes of this Contract of Carriage. (See [section 10.5](#))
- J. **Reservation Credit(s)** (future travel/flight credit or credit shell – these terms are all interchangeable) are non-transferable and may only be used by a guest on the original reservation. Your Reservation Credit will detail any applicable terms and conditions.
- K. **Spirit Airlines Guest Service Plan** outlines Spirit's policies and addresses circumstances that may have an impact on our Guests' travel plans, purchase decisions or overall expectations.
- L. **Stopover** means a voluntary interruption in the guest's journey at an intermediate city that isn't the destination for longer than the time allowed for a layover.
- M. **TSA** means U.S. Transportation Security Administration.

- N. **Warsaw Convention** means the Convention for the Unification of Certain Rules Relating to International Carriage by Air, executed in Warsaw, on October 12, 1929, including any amendments thereto.

2. RESERVATIONS

2.1 Confirmed Reservations

2.1.1. Guests who have purchased a reservation through the following methods hold a confirmed reservation:

- a. Direct bookings made with Spirit Airlines via [Spirit's website \(www.spirit.com\)](http://www.spirit.com), Spirit's mobile app, or by contacting the Spirit Airlines Reservations Center at 855-728-3555.
- b. Travel agency or internet travel site bookings (purchased other than at [Spirit's website \(www.spirit.com\)](http://www.spirit.com)).

2.1.2. Confirmed Reservation Validity

- No one shall be entitled to transportation without a confirmed reservation. Subject to any applicable limitations or restrictions set forth herein, guests with confirmed reservations will be entitled to transportation between airports of origin and destination. Confirmed reservations are valid for the dates and flights indicated in the reservation.
- For reservations made in person, the traveler making the purchase may be requested to provide identification that matches the credit card being used for the purchase.
- No reservation paid by credit card shall be considered a confirmed reservation if the transaction is not accepted by the carrier for any reason, whether or not the guest is notified that the reservation has been cancelled.
- Original credit card used may be requested at check-in in order to confirm the reservation.

2.2 Refusal to Sell Transportation

2.2.1. Spirit may refuse to sell transportation to any person, including the following, and may inform such persons that they are not permitted to purchase transportation from Spirit:

- a. Prior Misconduct – A person who has disrupted airline operations (at Spirit or other airlines), mistreated employees (of Spirit or others), or has not complied with Spirit's policies or has otherwise violated this Contract of Carriage.
- b. Misconduct – A person who has committed a fraudulent act against Spirit.

2.3 Check-In

- 2.3.1. Guests are required to have a boarding pass in-hand by the check-in time limit outlined in [section 2.4.1.a](#). Check-in begins at least two (2) hours prior to departure at the Spirit airport ticket counter or 24 hours prior to flight departure on [Spirit's website \(www.spirit.com\)](http://www.spirit.com) if eligible for online check-in.
- 2.3.2. It is the guest's responsibility to arrive at the airport with enough time to complete check-in and security screening processes, taking into consideration travel time both to and within the applicable airport, as well as processing through the security check point.
 - a. For domestic flights, Spirit recommends that guests arrive at the airport at least two (2) hours prior to (original) scheduled departure.
 - b. For international flights, Spirit recommends that guests arrive at the airport at least three (3) hours prior to (original) scheduled departure.
- 2.3.3. Guests wanting to check baggage may do so at the ticket counter once airport check-in begins. Baggage will not be accepted more than four (4) hours before scheduled departure time. Baggage must be checked at the ticket counter at least 45 minutes prior to the (original) scheduled departure time for all domestic flights, and 60 minutes for all international flights including U.S.V.I. flights. Exception: For all flights departing from Los Angeles (LAX), baggage must be checked at the ticket counter at least 60 minutes prior to the (original) scheduled departure time. Guests who present baggage after this time limit may be refused transportation. In the event that baggage is accepted after this time limit, the guest waives any claim for interim expenses (See [section 7.3.6.](#)) that result from the delay in delivery and will be liable for any applicable delivery costs if the bag is not carried on the same flight as the guest.

2.4 Cancellation of Reservations

- 2.4.1. All reservations and seat assignments are subject to cancellation without notice if:
 - a. The guest does not have a boarding pass in hand by the check-in time limits below:
 - Domestic travel: At least 45 minutes prior to the (original) scheduled departure time.
 - International travel: At least 60 minutes prior to the (original) scheduled departure time, including U.S.V.I. flights.

Some airports require an earlier check-in:

 - Los Angeles (LAX): At least 60 minutes prior to the (original) scheduled departure time for all flights.
 - b. The guest fails to make themselves available for boarding at the gate at least 15 minutes prior to (original) scheduled departure time for domestic flights; or 30 minutes prior to the (original) scheduled departure time for

international flights even if the guest has already checked in for the flight at a location designated for check-in.

In the event of a delay, guests are recommended to remain in the gate area for updates and possible early departures. Spirit shall not be liable to any guest who misses a flight, which departed earlier than the estimated departure time posted for the delay.

- c. The guest fails to travel on any flight segment of a booked itinerary and fails to modify/cancel their reservation prior to the time limit outlined in [section 3.3](#). In such instances, all subsequent flight segments on the itinerary will be cancelled.
 - d. Such action is necessary to comply with any governmental regulation or direction, or to comply with any governmental request for emergency transportation in connection with the national defense.
 - e. The guest has been informed that he/she is not permitted to purchase transportation from Spirit.
- 2.4.2. If Spirit refuses to transport the guest for any of the reasons stated above, the guest would not be eligible for denied boarding compensation.
- 2.4.3. Cancellations due to reasons stated in sections 2.4.1 a. through c. are subject to a No-Show Service Charge in accordance with [section 10.5](#).

3. FARES

3.1 General

Fares are subject to change until purchased. All domestic and international fares are per guest for each way of travel and include the base fare plus any applicable taxes, fees and surcharges; however, certain foreign countries may charge additional taxes and fees that are collected directly by the local government or local airport authority upon arrival or departure. Additional Spirit optional services may apply.

Spirit offers a range of fares and on certain discount fares, availability may be limited, and restrictions may apply. Subject to certain exceptions and/or restrictions set forth hereinafter, and except as otherwise expressly stated in this Contract of Carriage, all reservations are non-refundable. All Spirit reservations are non-transferable.

3.2 Currency/Method of Payment

- 3.2.1. All fares and charges are listed in United States dollars (USD).
- 3.2.2. Spirit does NOT accept cash, traveler's checks, certified (cashier's) checks, and money orders at certain domestic and international airports. At such airports, Spirit will accept credit/debit cards only. [For further information, please visit www.spirit.com at https://customersupport.spirit.com/hc/en-us/articles/217154817-Can-I-pay-with-cash-](https://customersupport.spirit.com/hc/en-us/articles/217154817-Can-I-pay-with-cash-)

NOTE: Cash conversion kiosks (operated and independently managed by companies not affiliated with Spirit Airlines) may be available at some airport locations. In no event shall Spirit Airlines be liable for any direct, indirect, incidental or consequential damage arising out of the use of such cash conversion machines.

3.3 Guest Initiated Modifications

- 3.3.1. Changes to an itinerary must be made at least 45 minutes prior to the (original) scheduled departure time for all domestic flights, and 60 minutes prior to the (original) scheduled departure time for all International flights including U.S.V.I. flights. Exception: For all flights departing from Los Angeles (LAX), changes must be made at least 60 minutes prior to the (original) scheduled departure time. (See [section 2.4.1.a.](#)) Online changes must be made at least one hour prior to the (original) scheduled departure.

Itinerary changes for all travel options are subject to any difference in fare for the alternate requested date(s) or flight(s), and any difference in government taxes and fees. With the exception of optional service charges for carry-on bags and/or first and second checked bags, any difference in carrier's optional service charges may also apply. Itinerary changes to the "Value" travel option are also subject to an additional per guest service charge.

- 3.3.2. Cancellations to an itinerary must be made at least 45 minutes prior to the (original) scheduled departure time for all domestic flights, and 60 minutes prior to the (original) scheduled departure time for all International flights including U.S.V.I. flights. Exception: For all flights departing from Los Angeles (LAX), cancellations must be made at least 60 minutes prior to the (original) scheduled departure time. (See [section 2.4.1.a.](#)) Online changes must be made at least one hour prior to the (original) scheduled departure.

A Reservation Credit for future travel on Spirit may be issued if any remaining value exists. Certain carrier charges may be excluded from the value of the credit. Itinerary changes to the "Value" travel option are also subject to an additional per guest service charge which is also excluded from the value of the credit. All Reservation Credits are non-transferable, must be booked prior to expiration, and have no cash value. Taxes and fees will not be refunded except when required by applicable law and when requested. Failure to cancel prior to the time limit specified above will result in forfeiture of fare.

- 3.3.3. Except as otherwise expressly stated elsewhere in this Contract of Carriage, all Spirit fares and optional services are purchased as non-refundable; however, a refund will be allowed if a reservation is canceled within 24 hours of initial booking, provided the reservation was made seven (7) days (168 hours) or more prior to the flight's scheduled departure.
- 3.3.4. Depending on the travel option selected, certain optional services may be purchased separately (e.g., bags and seats) during the booking process by calling Reservations, on spirit.com, on the mobile app, or at the airports. [Click here for optional services.](#)

- 3.3.5. Hopper Cancel For Any Reason ("CFAR") for Spirit Flights. [If you have purchased CFAR from Hopper through the Spirit website or mobile web page, please review the Terms and Conditions here.](#)
- 3.3.6. Additional fees may apply to group travel. [Please review group travel fees and information here.](#)

3.4 Routing

A fare applies only to the following:

- 3.4.1. Transportation between airports via the intermediate cities, if any, specified by Spirit in reference to that fare.
- 3.4.2. Reservations may not be issued or accepted for transportation that will either originate or terminate at an airport other than the airport for which the fares are published.

3.5 Children's Fare

Spirit Airlines does not offer children fares.

3.6 Travel Agent Bookings

For security purposes, we strongly recommend that travel agent bookings be made through Spirit's travel agency portal. Travel agents are responsible for ensuring accurate passenger information and communicating all fare rules and restrictions with guests. Pursuant to our Contract of Carriage, the original credit card used for booking may be requested at check-in in order to confirm the reservation. Evidence of fraudulent transactions made by a travel agency/agent may result in a ban on that agency/agent conducting business with Spirit.

4. **ACCEPTANCE/REFUSAL OF GUESTS**

4.1 Identification

A guest who refuses or fails to produce identification upon request may be denied service.

4.2 Travel Requirements and Documentation

The guest shall comply with all laws, regulations, orders, demands, or travel requirements (including but not limited to passports, visas, and health/immunization requirements) of countries to be flown from, into, or over, and with all rules, regulations, and instructions of Spirit.

4.2.1 Spirit shall not be liable for:

- a. any aid or information given by any agent or employee of Spirit to any guest in connection with obtaining necessary documents or complying with such laws, regulations, orders, demands, requirements, or instructions, whether given orally, in writing, or otherwise;

- b. the consequences to any guest resulting from his/her failure to obtain such documents or to comply with such laws, regulations, orders, demands, requirements, or instructions;
 - c. any expenses incurred due to the guest's failure to comply with this provision.
- 4.2.2 Spirit reserves, in its sole discretion, the right to refuse carriage to any guest who has not, in the judgment of Spirit, complied with applicable laws and regulations and Spirit policies.
- 4.2.3 The guest agrees to pay the applicable fare whenever Spirit, on government order, is required to return a guest to his or her point of origin or elsewhere due to the guest's inadmissibility into or deportation from a country, whether of transit or of destination.
- 4.2.4 Spirit reserves the right to hold, photocopy, or otherwise make an image reproduction of a travel document presented by any guest and accepted by Spirit as a condition of boarding.

4.3 Conduct/Condition

- 4.3.1. A guest shall not be permitted to board the aircraft or may be required to leave an aircraft if that guest:
- a. is disorderly, abusive, violent, or their conduct creates an unreasonable risk of offense or annoyance to other guests;
 - b. appears to be intoxicated or under the influence of drugs;
 - c. interferes or attempts to interfere with any member of the flight crew in the pursuit of his/her duties, or fails to obey lawful instructions of flight crew members;
 - d. is or is perceived by the flight crew to pose a security threat or risk of harm or damage to the airline, its aircraft or property, and/or other guests, or their property;
 - e. has a contagious disease that is transmissible during the normal course of a flight, e.g., chicken pox;
 - f. is unable or unwilling to sit in a seat with a seat belt fastened during the normal course of a flight;
 - g. is barefoot or inadequately clothed (i.e., see-through clothing; not adequately covered; exposed breasts, buttocks, or other private parts), or whose clothing or article, including body art, is lewd, obscene, or offensive in nature; or
 - h. has an offensive odor unless caused by a qualified disability.
- 4.3.2. If a guest is not permitted to board and/or required to leave an aircraft for safety and/or regulatory reasons under paragraph [4.3](#) and its sub sections, the guest will not be eligible for a refund.

4.3.2.1. Colombia Residents:

If a Colombian Resident is not permitted to board and/or required to leave an aircraft for safety and/or regulatory reasons under paragraph [4.3](#) and its sub sections, the guest will be eligible for a refund, subject to the following conditions:

- a. Spirit may retain 10% of the reservation value (excluding taxes and fees); and
- b. Spirit may retain the costs associated with the delays caused by the passenger.

4.3.3. Diversion of Aircraft - If Spirit is required to divert an aircraft to land at a location other than its intended destination, return an aircraft to a gate during taxi prior to takeoff or if a flight is delayed due to a passenger's disruptive or disorderly conduct, Spirit will be entitled to reimbursement from the passenger for the additional costs that Spirit incurs for such incidents including, but not limited to, costs to accommodate other passengers, excess crew and ground handling costs, fuel and fees. The amount due will be as determined by Spirit.

4.4 Refusal to Transport

Spirit may refuse to transport, or remove from any flight, any guest for the following reasons:

- 4.4.1. Compliance with any government regulation or with government request for emergency transportation in connection with national defense or national disasters (actual, threatened, or reported).
- 4.4.2. Whenever necessary or advisable by reason of weather or other conditions beyond its control (including, without limitation, acts of God, labor disturbances, strikes, civil commotions, embargoes, wars, hostilities, or disturbances) actual, threatened, or reported.
- 4.4.3. Refusal by a guest to permit a search of person or property for explosives, or for deadly or dangerous weapons, articles, or substances.
- 4.4.4. Spirit may refuse to transport any guest who is traveling across any international boundary if:
 - 4.4.4.1. the travel documents of such guest are not in order;
 - 4.4.4.2. for any reason, such guest's embarkation from, transit through or entry into any country from, thru, or to which such guest desires transportation would be unlawful; or
 - 4.4.4.3. such guest fails or refuses to comply with the rules and regulations of Spirit.

4.5 Prisoners

Spirit Airlines will not transport prisoners in the custody of law enforcement under any circumstances with or without restraints.

4.6 Guests with Disabilities

All guests with disabilities will be provided transportation except when refused transportation per the FAA Regulations regarding safety. Guests with disabilities need not give advance notice. A 48-hour advance notice is only required for the services, equipment, and accommodations stated in the DOT's 14 CFR part 382.27 (c) regarding nondiscrimination on the basis of a disability in air travel.

4.6.1. Attendants

Guests with disabilities are not required to travel with an attendant unless it is determined by the carrier that an attendant is essential for safety as stated in the DOT's 14 C.F.R. part 382.29 regarding nondiscrimination on the basis of a disability in air travel. Spirit personnel are not obligated to provide special assistance for personal needs (e.g., assistance in actual eating, assistance within the restroom, provision of medical services).

NOTE: Attendants must be at least 15 years of age at the time of travel.

4.6.2. Medical Certificates

If there is reasonable doubt that a guest can complete their flight safely, without requiring extraordinary medical assistance during flight, a medical certificate may be required in order for the guest to travel. A medical certificate is a written statement from a doctor asserting that an individual is capable of completing a flight safely, without requiring extraordinary medical assistance during flight. The medical certificate must be dated within 10 days of the guest's departure flight.

4.6.3. Refunds

Guests with disabilities may be eligible for a refund in the below-mentioned scenarios. Guests under this section will have three (3) options available to them: 1) a refund, 2) re-accommodation, or 3) a credit for future travel. If a guest rejects or fails to respond to an offer of the changes to their flight, re-accommodation of the flight, or a credit for future travel in these instances, and the original flight and re-accommodated flight depart without the guest, a refund of all flights where the guest abided by our Contract of Carriage will be automatically issued.

- a. **Aircraft Substitution.** If a substitution in aircraft impacts an accessibility feature needed for the guest's disability, a refund will be issued to the guest with the disability and to the guest's travel companions on the same reservation.
- b. **Downgrade in Class of Service.** If a downgrade in class of service impacts an accessibility feature needed for the guest's disability, a refund will be issued to the guest with a disability and to the guest's travel companions on the same reservation.

If a downgrade in class of service does not impact an accessibility feature needed for the guests' disability, a refund will still be issued in accordance

with section 10.2.3. The guest with a disability's travel companion on the same reservation will only be eligible for a refund in this instance if they have also been downgraded in class of service.

- c. Change in a connecting airport that is different from the guest's original itinerary. If a guest with a disability has a change in their connecting airport, and they needed to travel through the original airport to accommodate their disability, a refund will be issued to the guest with a disability and to the guest's travel companions on the same reservation.

4.7 Communicable Disease

If a guest has a disease that is potentially transmissible during flight, a medical certificate is required and must state that the guest's condition would not be communicable to other guests during the normal course of the flight. If it is potentially transmissible during the flight, but this can be prevented if certain conditions or precautions are implemented, the certificate would have to describe those conditions or precautions. In such instances, Spirit will put forth reasonable effort to carry out these measures, however, if Spirit is unable to do so, the guest will not be permitted to travel. A medical certificate in the situation of a communicable disease must be dated within 10 days of the flight for which the guest intends to travel (not 10 days prior to the guest's initial departure flight).

4.8 Respiratory Assistive Devices/Portable Oxygen Concentrators (POC)

Certain respiratory assistive devices (including portable oxygen concentrators, respirators, and ventilators) which are approved by the FAA for use in flight may be used on board Spirit Airlines aircraft. Guests using such permitted devices must do so strictly in accordance with applicable regulations, including the carriage of sufficient batteries. Spirit Airlines personnel are not trained to assist with or operate such devices.

Guests are encouraged to review any applicable requirements by referring to [Spirit's website \(www.spirit.com\)](http://www.spirit.com) or by contacting Spirit Airlines Reservations at 855-728-3555. It is also recommended that the guest call Spirit Airlines Reservations at least 48 hours before scheduled departure, to have it documented that the guest will be traveling with and using a respiratory assistive device onboard. To use a POC on board, guests must have an FAA approved POC. For more information, please review [Portable Oxygen Concentrators within the Special Items Chart in 7.5](#).

4.9 Pregnancy

Guests who are pregnant are urged to consult with their physician on whether it is safe to travel by air, including with due consideration the possibility of turbulence, cabin pressurization, significantly increased risk of deep vein thrombosis associated with pregnancy, and lack of ready access to medical care. This is particularly important for women in their ninth month of pregnancy, who are urged to obtain an examination from her physician shortly before flying to confirm that flying by air will be safe. Women with a history of complications or premature delivery should not fly at all. By travelling with Spirit, pregnant women acknowledge and accept these risks.

4.10 Guests of Size

Additional Seat Purchase – The purchase of more than one seat for use by a single guest is required to accommodate a guest of size who encroaches on an adjacent seat area and/or is unable to sit in a single seat with the armrests lowered.

4.10.1. A guest of size may purchase a travel option that includes a Big Front seat or purchase an additional reservation for an additional seat on the aircraft. Please see [section 4.11.2](#) for information related to seatbelt extensions and inflatable seatbelts.

4.10.2. If there are no available seats on the aircraft, the guest will be booked on Spirit's next available flight or the reservation will be refunded.

4.11 Seats

4.11.1 It is the guest's responsibility to notify Spirit of a unique seating need. In accordance with the Contract of Carriage, Spirit may refuse to transport individuals who are unable or unwilling to comply with Spirit's seating requirements.

NOTE: For Safety reasons, guests who must travel on a stretcher are not accepted.

4.11.2 Inflatable Seatbelts

Inflatable seatbelts are located on Spirit's Airbus A319, A320, and A321 aircraft, which includes some Big Front Seats ([For additional information related to inflatable seatbelt locations, click here.](#)). Any guest who occupies a seat that is equipped with an inflatable seatbelt must have their seatbelt securely fastened (buckled low and tight) around the guest's lap. Additionally, any guest traveling with a lap child or service animal that will sit in the guest's lap shall not be permitted to occupy a seat equipped with an inflatable seatbelt. Car seats may not be accommodated in any seat equipped with an inflatable seatbelt.

If a crew member determines that the guest cannot be safely accommodated as indicated above, he/she will attempt to reseat the guest and, if the original seat was purchased, the guest will be entitled to a refund for the optional service charge paid for such seat.

5. ACCEPTANCE OF CHILDREN

5.1 Accompanied Children

Accompanied children are accepted for transportation on both domestic and international flights as follows:

5.1.1. Children under 15 years of age are accepted when accompanied on the same flight by another guest who is at least 15 years of age.

5.1.2. For travel to/from an international destination, all children, regardless of age, are required to have a valid passport and all foreign government documentation required for entry into and departure from the foreign country. These

documents must be provided to Spirit at time of check in. It is the guest's responsibility to verify foreign government documentation and entry requirements.

5.2 Unaccompanied Children

Unaccompanied children are accepted for transportation only on domestic flights as follows:

- 5.2.1. For travel wholly within the United States and its territories, children at least 10 years of age through 14 years of age are accepted for unaccompanied travel on domestic, nonstop flights.

Spirit reserves the right to request documented proof of age.

- 5.2.2. Children less than 10 years of age will not be accepted for unaccompanied travel.
- 5.2.3. Spirit does not accept unaccompanied children for travel on connecting flights, on direct flights (a flight that makes a stop but does not change aircraft), or on flights to/from international destinations.
- 5.2.4. Young adults aged 15 or older are permitted to travel alone domestically and internationally. For international travel, they are required to have a valid passport and any other documents required by the country they are traveling to.
- 5.2.5. A service charge will apply for each unaccompanied child per way of travel, which includes Federal Excise Tax required to be collected and remitted to the U.S. government.
- 5.2.6. All travel by unaccompanied children must be on flights on which the child holds a confirmed reservation.
- 5.2.7. Gate Passes and Handling Procedures for Unaccompanied Minors
 - 5.2.7.1. All unaccompanied children must check in at the airport ticket counter with his/her parent or other responsible adult. Online check-in is not available for unaccompanied children.

Be sure to arrive to the airport early in order to complete the required documentation and to see the child safely through security screening (when permitted by airport) and identify the child to the gate agent for the boarding process.

- 5.2.7.2. The adult must remain at the airport until 15 minutes after the flight takes off.
- 5.2.7.3. Spirit must be provided the name and phone number of the parent or other responsible adult who will meet the child upon deplaning. The Guest Service Agent documents the information on an Unaccompanied Minor form, and places a copy of this information into a pouch. The pouch is then placed around the child's neck to

identify to the Flight Attendants that the child is traveling alone as an unaccompanied minor.

If the minor(s) is not met upon arrival by the individual responsible for meeting the minor(s), Spirit shall take whatever action deemed necessary by Spirit to ensure the minor(s) safe custody, including the return of the minor(s) to the airport of departure. The responsible adult who accompanied the minor(s) to the departure airport shall be responsible to reimburse Spirit for any and all expenses incurred by such actions.

- 5.2.7.4. The person dropping off the child must obtain a gate pass at the airport ticket counter (where permitted), then escort the child to the gate. The person picking up the child must obtain a gate pass at the airport ticket counter (where permitted) to proceed to the gate for the arrival of the flight. Spirit Airlines requires a photo Identification from the person(s) designated to meet the minor at the destination and will not release the child to anyone else.

Gate passes are only provided for an escort of an Unaccompanied Minor and for people who require assistance. Gate passes are not issued to anyone who requests a gate pass; there must be a valid reason. TSA requirements/security restrictions may vary based on the airport; thus, gate passes will be issued dependent on the current airport security/TSA guidelines.

5.3 Infants

- 5.3.1. Spirit encourages all adults traveling with children under the age of two (2) to purchase a seat for the child and secure the child in an FAA approved car seat. A paying adult guest may carry on his or her lap one infant over seven (7) days and under two (2) years of age (24 months). Once a child reaches their second birthday, they are no longer permitted to travel as a lap child. Spirit reserves the right to request documented proof of age for any traveler 2 years of age or younger. Please be prepared to provide documentation (birth certificate, passport, etc.) upon request.
- 5.3.2. If space is available after boarding, or if a separate reservation has been purchased for an infant over seven (7) days and under two (2) years of age, the infant may travel in a separate seat, provided that the infant must be securely placed in an FAA approved child restraint system (car seat) which meets the guidelines in [section 5.4](#).
- 5.3.3. An infant, age seven (7) days or less or an infant requiring an incubator or other life-support systems shall not be accepted for travel on Spirit.

5.4 Car Seats

One (1) car seat will be accepted per child as checked baggage at no charge. These items are not considered part of the guest's baggage allowance.

Car seats may be carried on board the aircraft if a seat has been purchased for the child; one (1) child per car seat. To be accepted for use on board, car seats must be FAA approved and conform to the following guidelines:

- 5.4.1. Child Seats manufactured before 2/26/1985 must bear the label "This child restraint system conforms to all applicable federal motor vehicle safety standards."
- 5.4.2. Child Seats manufactured after 2/25/1985 must bear the following two labels:
 - 1) "This child restraint system conforms to all applicable federal motor vehicle safety standards" and,
 - 2) "This restraint is certified for use in motor vehicles and aircraft."
- 5.4.3. Child Seats bearing the approval of a foreign government or seats manufactured under the standards of the United Nations are also acceptable.

NOTE: Car seats may not occupy a seat in an exit row, the row in front of or behind an exit row, or any seat equipped with an inflatable seat belt.

Some FAA approved car seats may not always fit in certain Spirit Airlines aircraft seats (see minimum seating dimensions below). Depending on the type of aircraft, Spirit Airlines will either try to re-seat the guest or re-accommodate them. If the car seat is not able to be safely accommodated on the aircraft (e.g., car seat too large for the aircraft seat) and the guest has purchased an extra seat which cannot be utilized, a refund will be issued without penalty.

[Spirit Airlines minimum seating dimensions can be found by visiting Spirit's website at https://customersupport.spirit.com/hc/en-us/articles/202096526-Can-I-bring-my-child-s-car-seat-and-or-stroller-onboard-](https://customersupport.spirit.com/hc/en-us/articles/202096526-Can-I-bring-my-child-s-car-seat-and-or-stroller-onboard-)

NOTE: Car seats that exceed these dimensions may not fit or be safely accommodated on Spirit Airlines seats.

- 5.4.4. CARES Child Aviation Restraint Systems are acceptable for use on board as an alternative to a car seat. A CARES device is a child safety harness that has been approved by the FAA to be used for aviation use only.

5.5 Strollers

One (1) stroller or folding wagon will be accepted per child as checked baggage at no charge. These items are not considered part of the guest's baggage allowance.

If the one (1) stroller is a collapsible stroller or a compact folding stroller that fits within the carry-on size dimensions in [section 7.2.2](#), it may be accepted as a carry-on item granted the stroller is collapsed prior to boarding and not utilized (opened) onboard the aircraft. The stroller must be stowed in the overhead bin with the wheels up to prevent rolling. Folding wagons are not accepted as carry-on baggage.

6. ACCEPTANCE OF ANIMALS

6.1 General

The guest assumes full responsibility for the conduct of his or her accompanying pet or service animal. In the event Spirit incurs any loss, damage, delay, expense or legal liability of any kind in connection with the transport of such animal, the guest accepts full liability for any sums incurred.

6.2 Pet Animals in Cabin

Transportation of pet animals in cabin must meet the following conditions:

On domestic flights (between two points within the United States or between the United States and its territories), for an extra charge, Spirit will only accept domesticated dogs, cats and in some cities rabbits and small household birds (including parrots, finches, canaries and parakeets). Birds that are not considered household birds and will not be accepted are farm poultry, waterfowl, game birds, birds of prey, or flightless birds. Guests traveling to/from U.S territories are responsible for checking with the local government for specific laws or regulations regarding the acceptance of pets, including furnishing valid health and rabies vaccination certificates. Rabbits and birds are not accepted to and from cities in Puerto Rico and the U.S.V.I. For additional information please contact Spirit Guest Service at 855-728-3555.

Spirit Airlines does NOT accept pets in cabin for travel on international flights except in the case of service animals when permitted by the international destination and provided the guest complies with the requirements in [section 6.3](#), including any specific requirement(s) of the international destination.

Spirit will accept pets for transportation in the guest cabin under the following conditions:

- 1) The animal is harmless, not offensive, odorless, and requires no attention during transit.
- 2) The container must be inspected and approved by Spirit and able to fit underneath the seat in front of the guest traveling with the animal. (Maximum container size is 18" x 14" x 9" (45.72 cm x 35.56 cm x 22.86 cm) in overall dimensions (L x W x H). The pet must be able to stand and turn around in the container.
- 3) Only one (1) pet container, per guest with a confirmed reservation is permitted. A maximum of two (2) similar pets (e.g., two dogs, two cats) may travel in one (1) container provided the animals are small enough to be accommodated in one (1) pet carrier. The pet(s) may NOT be removed from the container during transit.
- 4) A maximum of six (6) pet containers are allowed per aircraft cabin.
- 5) In the event the animal becomes offensive or causes a disturbance during transit, the pet will be removed at the first en route stop.
- 6) Spirit assumes no responsibility for the impaired health or death of the animal.

- 7) There is a service charge for each pet carrier.
- 8) Unaccompanied Minors are not permitted to travel with pets.
- 9) A pet carrier containing a pet counts towards the guest's carryon baggage allowance.

6.3 Service Animals

Spirit accepts for transportation, without charge, service dogs if they meet the requirements detailed in this section. No other type of animal will be accepted.

A service animal is defined as a dog that is at least four (4) months of age, regardless of breed or type, that is individually trained to do work or perform tasks for the benefit of a qualified individual with a disability, including a physical, sensory, psychiatric, intellectual, or other mental disability.

Spirit reserves the right to ask if an animal is needed to provide assistance for a disability. Our team members are trained to ask certain questions to determine if an animal is a service animal.

NOTE: More than two (2) service animals per guest will not be accepted.

6.3.1. Service Animal Accommodation

The service dog must be accommodated in accordance with FAA safety regulations.

The service dog must be able to fit on your lap if the dog is smaller than a two-year-old child, or fit within your foot space without blocking the egress of any other guest. If the dog is in a pet carrier, the pet carrier requirements in [section 6.2](#) must be met.

Spirit will make every reasonable effort to accommodate the guest in the event that the assistance of up to two (2) service dogs is required. If the dogs cannot be accommodated together at a single passenger seat or if a dog is too large to be safely accommodated, the guest may purchase an additional reservation(s), so that the dog(s) can be accommodated in accordance with FAA safety regulations, or the guest may be accommodated on a later flight where more seats are available.

6.3.2. Service Animal Air Transportation Form and Advance Notice

To travel with a service dog, you must submit the U.S. Department of Transportation (DOT) Service Animal Air Transportation Form attesting to the dog's health, training, and behavior at least 48 hours before your flight. Spirit's Guest Care Department will notify you upon document approval.

The form may be completed at the airport if you purchased your reservation within 48 hours of departure. Be sure to arrive early.

Instructions:

1. [Download the Service Animal Air Transportation Form at www.spirit.com/serviceanimals.](http://www.spirit.com/serviceanimals)
2. Read and complete the form.
NOTE: Two (2) forms are required if traveling with two (2) service dogs.
3. [Submit the form\(s\) at http://www.spirit.com/submit-service-animal-doc](http://www.spirit.com/submit-service-animal-doc) at least 48 hours before the flight.

NOTE: Guest Care will notify you upon document approval.

4. Keep the form with you for the entire duration of your trip.

NOTE: The form must be submitted for each reservation as they are not kept on file.

6.3.3. International Travel

For international travel, depending on the international destination, specific documentation regarding the service dog may be required. Guests are responsible for checking with the destination country for rules of acceptance of service animals as certain countries have restrictions and/or quarantine guidelines. For additional information please contact Spirit Guest Care at 855-728-3555.

[When entering or returning to the United States from an international country, click here to ensure Center for Disease Control \(CDC\) requirements are met.](#)

6.3.4. Animal Behavior

The service dog must remain under the control of its handler. If at any time the dog shows signs that it will cause a disruption in the cabin, it has not been trained to function as a service animal in a public setting, or any signs of aggression, it will not be allowed to travel.

6.3.5. Emotional Support Animals and Service Animals in Training

Spirit accepts emotional support animals and service animals in training for transportation as a pet in cabin for an extra charge. The animals must meet all the applicable pet in cabin conditions detailed in [section 6.2](#).

6.3.6. Search and Rescue Animals

Animals trained to detect explosives or trained for search and rescue on official duty status may be transported. Spirit Airlines reserves the right to request documentation.

6.4 Animals Checked as Baggage

Spirit Airlines does NOT accept animals as cargo or as checked baggage.

7. BAGGAGE

7.1 General

- 7.1.1. All baggage charges are non-refundable and may be paid in advance or at the airport. Certain countries may require taxes be collected on baggage charges. In such instances in addition to any other applicable charges set forth herein, such taxes will be collected by Spirit and paid to the taxing authority or as required under local regulations. In the event of a modification of an itinerary, the guest may have to pay any applicable increase in baggage charges. See [section 3.3](#) for further information.
- 7.1.2. Baggage charges are applicable per item, per way of travel, with the exception of stopovers and reservations purchased with multiple individual flight segments rather than as a valid connecting flight within the Spirit reservation system. In such instances, baggage charges are applicable per item, per individual flight segment. It is the guest's responsibility to claim their checked item(s) at each point of stopover. The item(s) must then be re-checked at the ticket counter prior to boarding the next flight segment on the reservation. Spirit is not liable for baggage which is not transferred due to the purchase of a non-valid connection.

7.2 Carry-On Baggage

- 7.2.1. Spirit Airlines guests may bring one (1) personal item (such as a crossbody bag, purse, laptop computer, backpack, or duty-free item) on board provided the item does not exceed the dimensions of 18 inches by 14 inches by 8 inches (45 cm x 35 cm x 20 cm) including handles and wheels. Personal items must be stowed in the under-seat space. Any item that exceeds these dimensions is no longer a personal item and will be considered a carry-on or checked bag, as applicable.
- 7.2.2. Carry-on baggage must fit into an overhead bin or under-seat space and not be more than 22 inches by 18 inches by 10 inches (56 cm x 46 cm x 25 cm) including handles and wheels. Items exceeding these dimensions must become checked baggage.
- 7.2.3. **Carry-on Allowance:** In addition to one (1) personal item ([section 7.2.1](#)), one (1) carry-on item ([section 7.2.2](#)) may be allowed as follows:

One (1) carry item ([section 7.2.2](#)) is permitted in the aircraft cabin when the travel option purchased includes a carry-on or the carry-on has been purchased as an optional service when allowed provided there is space for its stowage at the time of boarding. If no overhead bin space is available, the item will be checked at the gate.
- 7.2.4. The following items do not count towards a guest's carry-on allowance. Although these articles are exempt from carry-on limitations, they must be properly stowed for ground movement, takeoff, and landing.

These exempt articles include, but are not necessarily limited to the following:
a) Assist pet carrier when traveling with assist/service animal

- b) One small bag of photographic equipment not to exceed 9 inches by 6 inches by 7 inches or 22 linear inches (L+W+H)
- c) Crutches/Canes/Braces or other prosthetic device upon which the guest is dependent
- d) Guest assistive devices & service animals
- e) Food for consumption on board the flight
- f) Infant bag, when traveling with the infant
- g) Infant/Child Car Seats, when the child is carried in the seat
- h) One Duty Free box or bag containing Duty Free items
- i) Outer garments (a coat, jacket, hat, or wrap)
- j) A reasonable amount of reading material for the flight
- k) One collapsible stroller or, compact folding stroller, when the child is traveling and the requirements in [section 5.5](#) are met.
- l) Umbrella

7.2.5. Spirit may require that a carry-on be checked as baggage if the item cannot be safely stowed or if it doesn't comply with Spirit's baggage policies set forth herein. Excess items will be charged according to checked baggage charges.

7.2.6. Seat Baggage

An item of baggage may occupy a seat, subject to applicable regulations, provided the guest accompanies the property, the item meets specified dimensions, the item can be properly secured by the seatbelt, reservations are made in advance, and the applicable fare is paid. Items accepted as seat baggage cannot block placards or signs.

Animals are NOT accepted as seat baggage.

7.3 Checked Baggage

7.3.1. Charges apply for all checked baggage when not included in the travel option purchased. Additional checked bags may be available for purchase. Spirit Airlines allows up to five checked bags/items per paying guest (restrictions may apply to certain destinations and during specific times of the year).

7.3.2. Checked Baggage Size and Weight Restrictions:

7.3.2.1. Any checked baggage (including a first checked bag that may be part of a travel option) that exceeds the standard size and weight limit including handles and wheels is subject to excess baggage charges in addition to the standard checked baggage charge (a standard checked bag is defined as a bag not exceeding 62 linear inches in overall dimensions (Length + Width + Height) and 50 pounds in weight).

7.3.2.2. Spirit Airlines will not accept baggage that weighs more than 100 pounds with the exception of mobility aid devices and musical

instruments (For more information on musical instruments see the [Special Items chart in section 7.5](#)).

- 7.3.2.3. With the exception of certain items, Spirit Airlines will not accept baggage that measures more than 80 linear inches in overall dimensions (Length + Width + Height).
- 7.3.2.4. From December 1st to January 10th, the following restrictions apply to guests flying to and from international destinations (except Lima, Peru see [section 7.3.2.5](#), and Colombia and Ecuador see section 7.3.2.6). Guests may check one (1) item and may purchase additional checked items on a first-come first-serve basis based on inventory. Overweight baggage is subject to overweight baggage charges. Oversized items up to 80 linear inches in overall dimensions (203 cm) are permitted and are subject to oversized baggage charges.
- 7.3.2.5. When traveling to and from Lima, Peru, guests may check one (1) item and may purchase additional checked items on a first-come first-serve basis based on inventory. Overweight baggage is subject to overweight baggage charges. With the exception of Bicycles, Ski Equipment, Surfboards, and Javelin/Vaulting Pole Equipment as stated in [section 7.5](#), items measuring more than 80 linear inches in overall dimensions will not be accepted. From December 1st to January 10th, any item (including those listed above) will not be accepted if the item(s) exceeds 80 linear inches.
- 7.3.2.6. When traveling to and from Colombia and Ecuador, guests may check one (1) item and may purchase additional checked items on a first-come first-serve basis based on inventory. Checked items are subject to overweight and oversized charges.
- 7.3.3. Spirit will check baggage for a guest with a valid reservation subject to the following conditions:
 - 7.3.3.1. Baggage must be checked at the airport in advance of flight departures as described in [section 2.3.3](#).
 - 7.3.3.2. Name identification is required on the outside of all baggage. Spirit recommends placing identification, including phone number, on the inside as well.
- 7.3.4. Baggage will only be checked to:
 - 7.3.4.1. To the guest's final destination or to the guest's next airport of stopover on the Spirit reservation. Bags are not checked to other airline destinations or stopovers.
 - 7.3.4.2. Spirit will refuse to transport or will remove at any airport, baggage that a guest refuses to submit for inspection. Spirit may refuse to transport a guest's baggage on any flight other than the flight carrying the guest.

7.3.5 Delayed, Damaged and Lost Baggage

If a bag/item is delayed, lost, damaged, or pilfered, you must notify a Spirit Airlines representative at the airport and file a mishandled baggage report within four (4) hours* of arrival of the flight on which you traveled (unless applicable law or treaty provides for a longer period of time). In the event your baggage does not arrive at your destination with you, please file a report immediately to initiate a search for the delayed item(s).

*Exception: In the rare circumstance that a wheelchair or scooter (designed solely for use by a mobility-impaired person for locomotion) is mishandled, the four (4) hour timeframe is extended to 72 hours.

The virtual Baggage Service Office (vBSO) may be used to create the report when available. The report must be filed in person with a Spirit representative if the vBSO is unavailable or not offered at your airport. Once a report is created, you will be provided with a report number (i.e., File ID). Note that some baggage damage reported via vBSO requires the baggage to be reviewed by a Spirit representative at the airport.

For international travel, in the case of baggage damage, the guest entitled to delivery must notify Spirit as soon as possible after discovery of the damage, and no later than seven (7) days from receipt of checked baggage. In the case of delay or loss, Spirit must be notified no later than twenty-one (21) days from the date on which the baggage should have been placed at the guest's disposal.

Reasonable efforts will be made to deliver delayed baggage within 12 hours of flight arrival for domestic travel and 15 or 30 hours of flight arrival for international travel. Once your belongings are located, they will be returned to you as quickly as possible. Baggage delayed due to a guest's late check-in, change in destination after check-in, or a guest traveling standby, will be delivered at the guest's expense.

7.3.5.1 To the guest's final destination or to the guest's next airport of stopover on the Spirit reservation. Bags are not checked to other airline destinations or stopovers.

7.3.6 Delayed Baggage - Reimbursable Expenses

Spirit Airlines allows reasonable interim expenses for guests whose bags have been delayed. Interim expenses incurred are limited to reasonable personal items, such as clothing and toiletries purchased as a result of the delay. All original receipts must be provided for reimbursement; copies will not be accepted. Spirit Airlines reserves the right to request that items purchased as a result of a delayed bag be returned prior to the issuance of compensation. Items purchased are intended to replace items in a delayed bag. Any reimbursement is considered an advance and will be deducted from a final settlement in the unlikely event the bag is deemed lost.

In the rare circumstance that a wheelchair or scooter (designed solely for use by a mobility-impaired person for locomotion) is mishandled, receipts for

transportation costs to or from the airport as a direct result of the mishandling may be submitted for reimbursement as part of the claim process.

7.3.7 Delayed Baggage – In Excess of Five (5) Days

If your baggage has not been located and returned within five (5) days, a claim should be filed with Central Baggage. To file a claim, you will need to complete the online claim form. The online claim form is a different form from the delayed baggage report that is filed at the airport. Additional information and details that you provide on this form will assist Central Baggage with advanced tracing and help improve the likelihood of success in locating your baggage. For further details on filing a claim, see [section 7.3.9](#).

7.3.8 Significantly Delayed or Lost Baggage

7.3.8.1 Significantly delayed baggage is checked baggage that is delayed as outlined in the timeline below. For itineraries with both domestic and international flights, the international timeline would apply. The time of the delay begins when the guest is given the opportunity to deplane at their destination and ends when Spirit relinquishes custody of the bag.

For domestic flights: Checked baggage that is delayed by 12 hours.

For international flights that are 12 hours or less in duration: Checked baggage that is delayed by 15 hours.

For international flights that are more than 12 hours in duration: Checked baggage that is delayed by 30 hours.

7.3.8.2 An automatic refund to the original form of payment for the checked baggage fee will be issued, with exceptions, when a checked bag is significantly delayed as outlined in 7.3.8.1. The checked baggage fee is a fee the guest pays for checked baggage separately from their travel option. If a bag is included in a travel option, the guest is not eligible for a refund.

For guests due a refund for their checked baggage fee, who purchased their checked baggage with a credit card, Spirit will process the credit within seven (7) business days. Due to various billing cycles, a credit card statement may not reflect a refund immediately.

For guests due a refund for their checked baggage fee, who purchased their checked baggage with cash or another form of payment, Spirit will issue a refund within 20 business days. Cash refunds are issued in the form of a check or direct to a U.S.-issued debit card.

7.3.9 Damaged Baggage

If your bag is damaged a report must be completed within the required time limit set forth in [section 7.3.5](#).

Once a report is completed, a claim should be filed with Central Baggage. To file a claim, you will need to complete the online claim form. For further details on filing a claim, see [section 7.3.9](#).

7.3.10 Filing A Baggage Claim

All claims for compensation (e.g., delay, loss, damage and pilferage) are filed at www.spirit.com/bagclaim and must include a completed online claim form inclusive of all the required documents.

Verifiable proof of purchase (receipts) is required for all claimed items with a declared value of \$50.00 and higher. For interim expenses, verifiable proof of purchase of reasonably priced items is required for all items.

NOTE: Spirit Airlines reserves the right to request original documents of interim purchases to be mailed.

Actual value for reimbursement of all mishandled baggage is determined by the original purchase price, less reasonable depreciation for prior usage (not applicable to assistive devices).

The claim and all the required documents must be received within thirty (30) days of the date of arrival unless applicable law or treaty provides for a longer period of time.

7.4 Fragile and Perishable Items

Fragile/Perishable items are only accepted if a Spirit employee is made aware of such item, and a release is signed that indemnifies Spirit against liability for damage to, loss or spoilage of, or delay in delivery resulting in damage to, loss or spoilage of such items. Failure to alert Spirit of fragile/perishable items in baggage may result in denial of loss or damage claims.

The following are some examples of items that are fragile or perishable, or otherwise unsuitable as checked baggage, and are subject to the conditions of acceptance set forth above: bicycles, blueprints, cameras, ceramics, china, crystal, dolls, figurines, flash equipment, flowers, glass or glass containers, lenses, maps, mirrors, models, paintings, perfumes, liquids, bottles, musical instruments and equipment, kites, surfboards, seafood, plants, sculptures, strollers, trophies, vases, folding wagons and wines.

Perishable items include, without limitation, fruit, vegetables, meats, fish, poultry, bakery products, other forms of food, flowers, floral displays, plants, and similar articles requiring maintenance at specific temperatures, such as medicine. These items must meet local agricultural guidelines.

Spirit will refuse to accept property for transportation that is not suitably packaged to withstand ordinary handling, the size, weight, or character of which makes it unsuitable for transportation, or that cannot be accommodated without harming or annoying guests. Fragile and perishable items will be accepted if the tube, container or case is designed for shipping such items, and it is packed in leak-proof containers or in airline approved protective material.

NOTE: Plastic bags or foam containers are not acceptable for frozen food or other items that may leak during transit.

7.5 Conditions for Acceptance of Special Items

The following items may be accepted as carry-on and/or checked baggage with restrictions. Standard baggage charges apply to ALL checked items and carry-on items (that exceed personal item dimensions), except where a special charge is indicated below. Size and weight charges may also apply, unless the overweight or oversized charge is specifically waived as stated below. To be accepted as carry-on baggage, the item must be within the size limits listed in [section 7.2](#). Checked baggage may require a limited liability release tag, which can be obtained at the Spirit Airline's airport ticket counter.

For safety and security reasons, all items must be securely packed inside a bag or case/container. Unsecured items may not be attached to a bag. Items that are packed separately will be considered two separate items and are subject to separate service charges.

SPIRIT DOES NOT PROVIDE SHIPPING BOXES.

NOTE: The following list is NOT all inclusive.

Item	Description	Carry-on?	Checked?	Requires Limited Liability Release
Alcohol	A maximum of 5 Liters or 1.3 gallons of liquor products containing more than 24% and no more than 70% alcohol by volume are allowed to be carried per guest in checked baggage. Containers must be unopened and packaged so as not to break or leak. One duty free box or bag containing duty free items is permitted in addition to the standard carry-on baggage allowance. Alcohol transported cannot be consumed onboard the aircraft. * Liquor products over 70% alcohol by volume (over 140 proof) will NOT be accepted.	Yes – with exceptions*	Yes – with exceptions*	Yes

Item	Description	Carry-on?	Checked?	Requires Limited Liability Release
Antlers	Dimension (L + W + H) must not exceed 120 linear inches. Head/skull must be completely clean and free of residue. Points must be covered and protected.	No	Yes	Yes

Item	Description	Carry-on?	Checked?	Requires Limited Liability Release
Archery Equipment	Archery equipment must be packed in a case or in a container of sufficient strength to protect the bows and quiver with arrows from accidental damage.	No	Yes	Yes

Item	Description	Carry-on?	Checked?	Requires Limited Liability Release
Artistic Items	Items include but are not limited to: oversized pictures, drawings, statues, models, souvenirs, art objects, curios and similar articles.	Yes	Yes	Yes

Item	Description	Carry-on?	Checked?	Requires Limited Liability Release
Balls/ Balloons	Items include but are not limited to: Footballs, soccer balls, basketballs, volleyballs. Items may need to be slightly deflated for safe transport. Helium balloons may be transported if completely deflated.	Yes	Yes	Yes

Item	Description	Carry-on?	Checked?	Requires Limited Liability Release
Baseball Equipment	* While baseball equipment will be accepted, baseball bats will not be accepted as carry-on baggage.	Yes – with exceptions*	Yes	Yes

Item	Description	Carry-on?	Checked?	Requires Limited Liability Release
Bicycles	Bicycles are included as part of the guest's standard baggage allowance and will be accepted for a special charge per direction. Oversize limits and charges are waived for bicycles. Overweight charges are waived for bicycles. Bicycle equipment may consist of (1) non-motorized touring or racing bicycle with a single seat. Bicycles should be prepared for transportation by the guest. Bicycle must be placed in a cardboard or hard cased bike container. Bicycle tires must be deflated. Bicycles not enclosed will NOT be accepted. * Spirit reserves the right to refuse transportation of these items due to safety and/or operational limitations.	No	Yes – with exceptions*	Yes

Item	Description	Carry-on?	Checked?	Requires Limited Liability Release
Body boards, Boogie boards, Kiteboards, and Wakeboards,	One item includes one board with any keels or fins removed and placed in checked baggage to prevent damage. One item will count as a checked bag provided it does not exceed 62 linear inches. Overweight charges are applicable. Items that exceed 62 linear inches will be classified as surfing equipment and will have a special charge per direction. See Surfing Equipment for more details.	No	Yes	Yes

Item	Description	Carry-on?	Checked?	Requires Limited Liability Release
Bowling Equipment	* To be stowed onboard, bowling bags must fit under the seat in front of you, and contain only one (1) bowling ball. Bowling balls may not be stowed in the overhead bins.	Yes – with exceptions*	Yes	Yes

Item	Description	Carry-on?	Checked?	Requires Limited Liability Release
Boxes and Plastic Containers	Boxes may be opened and inspected upon check-in. Boxes must meet the same restrictions contained in our baggage acceptance policy. Boxes must have the strength to hold the contents. Spirit is not responsible for packaging/re-packaging any boxes. * Boxes may be transported as checked baggage to all locations except when embargos are in place. Boxes	Yes	Yes – with exceptions*	Yes

Item	Description	Carry-on?	Checked?	Requires Limited Liability Release
	containing or having contained hazardous material are NOT accepted.			

Item	Description	Carry-on?	Checked?	Requires Limited Liability Release
Camping Gear	Items include but are not limited to: Backpacks, sleeping bags, and knapsacks * Any dangerous goods such as flares, camping stove fuel, etc. are NOT accepted.	Yes – with exceptions*	Yes – with exceptions*	Yes

Item	Description	Carry-on?	Checked?	Requires Limited Liability Release
Ceramics/ Chinaware/ Glass	Items include but are not limited to: Pots, statues, bowls, dishes, glasses or other containers made of clay hardened by heat, earthenware, crockery, and containers or ornaments made of porcelain or baked clay, and items made of or containing glass and similar articles. * To be accepted as checked baggage, these items must be packed properly.	Yes	Yes – with exceptions*	Yes

Item	Description	Carry-on?	Checked?	Requires Limited Liability Release
Dry Alkaline (e.g., AA, D, 9V) and Dry Rechargeable (e.g., NiMH NiCAD) Batteries	* Each spare lithium battery must be individually protected so as to prevent short circuits (e.g., by placement in original retail packaging, by otherwise insulating terminals by taping over exposed terminals, or placing each battery in a separate plastic bag or protective pouch). <u>Limits:</u> A maximum of 20 batteries and battery powered devices per passenger is considered for personal use. More than 20 batteries or battery-powered devices will not be accepted.	Yes - with exceptions*	Yes - with exceptions*	No

tem	Description	Carry-on?	Checked?	Requires Limited Liability Release
Dry Ice	Spirit accepts solid dry ice in quantities not exceeding 5.5 lbs. in carry-on or checked baggage. The following conditions apply: - The dry ice must be used as a refrigerant for the contents of the container. - The container must be ventilated to allow for the venting of carbon dioxide gas. - Additionally, as checked baggage, the package must: - Be clearly marked "DRY ICE" or "CARBON DIOXIDE SOLID" - Be marked with the net weight of the dry ice or an indication that the net weight of the dry ice is 5.5 pounds (2.5 kg.) or less.	Yes	Yes	Yes

Item	Description	Carry-on?	Checked?	Requires Limited Liability Release
Electric Chainsaws	Electric chainsaws must be packaged in original container or hard sided container for safe transport. Spirit does NOT permit other types of powered chain saws, such as fuel or gas powered, on any flight due to the DOT's requirements for transporting hazardous materials.	No	Yes	Yes
Item	Description	Carry-on?	Checked?	Requires Limited Liability Release
Electric Skateboards & Hover Boards	Electric skateboards (including one wheels) and hover boards are NOT allowed for transport.	No	No	N/A
Item	Description	Carry-on?	Checked?	Requires Limited Liability Release
Electronic Cigarettes (e-cigarettes)	* E-cigarettes and other battery-powered smoking devices are NOT allowed to be used onboard any Spirit Airlines aircraft. Some countries (e.g. Dominican Republic) prohibit the carriage of these devices in carry-on baggage, checked baggage, and/or on one's person, in which case Spirit will enforce such prohibition(s).	Yes – with exceptions*	No	N/A
Item	Description	Carry-on?	Checked?	Requires Limited Liability Release
Electronics	Items include but are not limited to: All video and audio devices, televisions, radios, computers, stereo equipment, VCR players, VCR recorders and their accessories, typewriters, hair dryers, sewing machines, specialized equipment, and similar articles.	Yes	Yes	Yes
Item	Description	Carry-on?	Checked?	Requires Limited Liability Release
Firearms & Ammunitions	Firearms Firearms are accepted provided that all of the following provisions are met: 1. The guest checking the firearm is at least 18 years of age. 2. The guest is not traveling to an international destination. 3. The guest declares the firearm to be unloaded and signs a Firearms Declaration tag. NOTE: A guest checking multiple firearms must complete a Firearms Declaration tag for each firearm checked. 4. The firearm is in a hard-sided container which is locked, and only the guest retains the key or combination. 5. A signed Firearms Declaration tag(s) must be placed as follows:	No	Yes	No

Item	Description	Carry-on?	Checked?	Requires Limited Liability Release
	- If the hard-sided locked container is inside another piece of luggage, the tag shall be placed inside the luggage next to the locked container. - If the firearm is a rifle or shotgun, the tag shall be placed inside the locked hard-sided rifle or shotgun case. - If the firearm is contained in a locked hard-sided suitcase, the tag shall be placed inside the suitcase next to the firearm. Ammunitions Small arms ammunition (up to 19.1 mm for rifle and pistol cartridges, any size shotgun shells) for personal use is accepted provided that all of the following provisions are met: - The guest is not traveling on an international flight, and is not under the age of eighteen. - Amount of ammunition must not exceed eleven pounds (11 lb.) per guest. - Ammunition must be securely packed in boxes or other packaging specifically designed to carry small amounts of ammunition. Ammunition clips and magazines must also be securely boxed. (continued on next page) - Firearms and properly packaged ammunition may be carried in the same hard-sided container. Or, the ammunition may be carried in a separate piece of checked baggage.			
Item	Description	Carry-on?	Checked?	Requires Limited Liability Release
Fishing Equipment	Fishing rods/poles must be secured in a case or container. Guests may pack reels or fragile tackle that do not pose a security threat in their carry-on baggage. * Tackle Equipment such as sharp fishing may be considered dangerous, such as large fishhooks, should be sheathed, securely wrapped, and will be accepted as checked baggage only.	Yes – with exceptions*	Yes	Yes
Item	Description	Carry-on?	Checked?	Requires Limited Liability Release
Golf Equipment	Golf bags containing golf clubs are exempt from oversize charges; however, overweight charges are applicable. Golf equipment should be enclosed with a cover to prevent loss of contents. Hard sided carriers are recommended. *Golf Clubs will not be accepted as carry-on baggage.	Yes – with exceptions*	Yes	Yes (soft-sided golf bags only)

Item	Description	Carry-on?	Checked?	Requires Limited Liability Release
Hockey Equipment	One item of hockey equipment includes two (2) hockey sticks (taped together) and one bag containing only hockey equipment. Bags containing hockey sticks are exempt from oversize charges; however, overweight charges are applicable. *Hockey sticks will not be accepted as carry-on baggage.	Yes – with exceptions*	Yes	Yes

Item	Description	Carry-on?	Checked?	Requires Limited Liability Release
Household Articles	Lamps, lamp shades, furniture and items of similar nature are acceptable if properly packaged.	Yes	Yes	Yes

Item	Description	Carry-on?	Checked?	Requires Limited Liability Release
Ice	Spirit does not accept any form of loose or cubed ice for transport to be packed in coolers, lunch bags, etc. * Frozen water in bottles or ice packs can be used as a refrigerant.	Yes – with exceptions*	Yes – with exceptions*	Yes

Item	Description	Carry-on?	Checked?	Requires Limited Liability Release
Incubators	Incubators are NOT allowed for transport.	No	No	N/A

Item	Description	Carry-on?	Checked?	Requires Limited Liability Release
Javelin/ Vaulting Pole Equipment	Vaulting poles and javelins are exempt from size limits; however, oversize charges apply if the item is greater than 62 linear inches. Overweight charges are applicable. * Spirit reserves the right to refuse transportation of these items due to safety and/or operational limitations.	No	Yes – with exceptions*	Yes

Item	Description	Carry-on?	Checked?	Requires Limited Liability Release
Kayak, Boat, Canoes	Kayaks, Boats, and Canoes are NOT allowed for transport.	No	No	N/A

Item	Description	Carry-on?	Checked?	Requires Limited Liability Release
Lacrosse Equipment	One item of lacrosse equipment includes two (2) lacrosse sticks (taped together) and one bag containing only lacrosse equipment. Bags containing lacrosse sticks are exempt from oversize charges; however, overweight charges are applicable. * Lacrosse sticks will not be accepted as carry-on baggage.	Yes – with exceptions*	Yes	Yes

Item	Description	Carry-on?	Checked?	Requires Limited Liability Release
Lithium Ion Batteries for Mobility Assistive Devices	* A maximum of one spare battery not exceeding 300 watt hours (Wh), <u>or</u> two spares batteries not exceeding 160 Wh each may be carried in carry-on baggage. Spare batteries are NOT accepted as checked baggage. <u>Rechargeable lithium ion batteries without a protective housing</u> must be removed from the mobility assistive device and battery terminals protected from short circuit. The battery is limited in size to no more than 300 Wh, and may be carried in carry-on baggage only. The guest must advise Spirit of the battery location. <u>Rechargeable lithium ion batteries with a protective housing</u> may remain installed and be checked with the mobility assistive device only if it is securely attached to the device, and the terminals protected from short circuit. The battery cables may remain connected only if the device is protected from accidental activation. Lithium ion batteries with a protective housing are not limited in Wh when checked with the assistive device.	Yes – with exceptions*	Yes – with exceptions*	N/A
Item	Description	Carry-on?	Checked?	Requires Limited Liability Release
Lithium Ion Batteries for Portable Electronic Devices	* Each installed or spare lithium battery must not exceed 100 Watt-hours (Wh). Additionally, each installed or spare lithium battery must be of a type proven to meet the requirements of each test in the UN Manual of Tests and Criteria, Part III, Sub-section 38.3. <u>Spare Batteries</u> Spare lithium batteries are accepted in carry-on baggage ONLY. In carry-on baggage, a reasonable number of individually protected lithium ion batteries (for personal use only) each not exceeding 100 Wh, may be carried per person. Each spare lithium battery must be individually protected so as to prevent short circuits (e.g., by placement in original retail packaging, by otherwise insulating terminals by taping over exposed terminals, or placing each battery in a separate plastic bag or protective pouch). <u>Limits:</u> A maximum of 20 batteries and battery powered devices per passenger is considered for personal use. More than 20 batteries or battery-powered devices will not be accepted.	<u>Installed and Spares</u> Yes – with exceptions*	<u>Installed</u> Yes - with exceptions* <u>Spares</u> No	No

Item	Description	Carry-on?	Checked?	Requires Limited Liability Release
Lithium Metal Batteries for Portable Electronic Devices	* The lithium content for lithium metal (non-rechargeable) batteries may not exceed 2 grams per battery. Additionally, each installed or spare lithium battery must be of a type proven to meet the requirements of each test in the UN Manual of Tests and Criteria, Part III, Sub-section 38.3. <u>Spare Batteries</u> Spare lithium batteries are accepted in carry-on baggage ONLY. Spare batteries must be protected from damage and short circuit. <u>Limits:</u> A maximum of 20 batteries and battery powered devices per passenger is considered for personal use. More than 20 batteries or battery-powered devices will not be accepted.	<u>Installed and Spares</u> Yes – with exceptions*	<u>Installed</u> Yes - with exceptions* <u>Spares</u> No	No

Item	Description	Carry-on?	Checked?	Requires Limited Liability Release
Martial Arts	Items include but are not limited to: Billy clubs, blackjacks, brass knuckles, kubaton, martial arts weapons, night sticks, nunchaku, stun guns, shocking devices and throwing stars.	No	Yes	Yes

Item	Description	Carry-on?	Checked?	Requires Limited Liability Release
Medical Portable Electronic Devices (M-PED)	Medical Portable Electronic Devices (e.g., External Defibrillator Life Vests) may be transported at no charge when carried by itself or with other assistive devices, medications and/or medical supplies. These devices do not count towards the guest's baggage allowance. * Please see Medical Certificates for further information regarding when Medical Certificates may be required. For battery requirements see Lithium Ion Batteries for Portable Electronic Devices or Lithium Metal Batteries for Portable Electronic Devices as applicable.	Yes – with exceptions*	Yes – with exceptions*	N/A

Item	Description	Carry-on?	Checked?	Requires Limited Liability Release
Musical Instruments	Musical Instruments are included as part of the guest's standard baggage. Musical instruments are considered a fragile item. Fragile items will be accepted as checked baggage if they are appropriately packaged in a container/case designed for shipping such items. Music instruments that exceed 150 linear inches or 165 lbs. will not be accepted. * Small musical instruments (e.g. violins, flutes, guitars, etc.) are permitted as carry-on baggage as long as the instrument can be safely stowed in the overhead bin or under the guest's seat. Stowage in the overhead bins is available on a first-come, first-serve basis.	Yes – with exceptions*	Yes	Yes

Item	Description	Carry-on?	Checked?	Requires Limited Liability Release
Musical Instruments as Seat Baggage (Cargo in the Cabin)	Spirit Airlines allows the carriage of musical instruments in the cabin as seat baggage (cargo in the cabin) if the instrument is too large to be stowed safely in a suitable baggage compartment in the aircraft cabin or under a passenger seat. The guest must purchase an additional seat and the cost is the applicable fare for the portions of the flight that the extra seat is requested plus sales tax. No additional fees will be charged. The instrument must be appropriately packaged in a container/case in a manner to avoid possible injury to guests and guest compartment occupants. The instrument may not impose any load on seats or the floor structure that exceeds the load limitation for those components. The item must be properly secured by the aircraft's seatbelt or other tie down having enough strength to eliminate the possibility of shifting under all normally anticipated flight and ground conditions. The instrument cannot block any guest's view of the "SEAT BELT" sign, "NO SMOKING" sign or required "EXIT" sign. The instrument cannot occupy an emergency exit seat or impede access to the cabin aisle. The instrument may occupy a middle seat provided the adjacent window seat remains unoccupied.	Yes	N/A	N/A

Item	Description	Carry-on?	Checked?	Requires Limited Liability Release
Nebulizers, Respirators and Ventilators	These devices may be transported at no charge when carried by itself or with other assistive devices, medications and/or medical supplies. These devices do not count towards the guest's baggage allowance. Such devices with labels showing that they meet FAA safety requirements can be used during flight.	Yes	Yes	No

Item	Description	Carry-on?	Checked?	Requires Limited Liability Release
Non-Spillable Wet Batteries for Portable Electronic Devices	* For a non-spillable battery, each battery must not exceed a voltage greater than 12 volts and a watt-hour rating of not more than 100 Wh. Limits: No more than two individually protected spare batteries may be carried. To be accepted as checked baggage, the battery terminals must be protected from damage and short circuit and be contained within strong packaging. The packaging must be marked "non-spillable".	<u>Installed and Spares</u> Yes – with exceptions*	<u>Installed and Spares</u> Yes – with exceptions*	No

Item	Description	Carry-on?	Checked?	Requires Limited Liability Release
Oxygen	Contained oxygen and other gasses, e.g., in cylinders, canisters are NOT permitted for carriage on Spirit Airlines. Spirit does NOT offer oxygen onboard its aircraft.	No	No	N/A

Item	Description	Carry-on?	Checked?	Requires Limited Liability Release
Paintball Equipment	Paintball guns are not considered a firearm and may be transported in unlocked, soft or hard-sided baggage. Compressed gas cylinders are NOT permitted for carriage on Spirit Airlines.	No	Yes	Yes

Item	Description	Carry-on?	Checked?	Requires Limited Liability Release
Parachute Equipment	* Sporting parachutes are acceptable provided the parachute and its accessories do not include any items that are prohibited from being carried, e.g., compressed gas cylinders, flares or other hazardous materials.	Yes – with exceptions*	Yes	Yes

Item	Description	Carry-on?	Checked?	Requires Limited Liability Release
Photographic Equipment	Items include but are not limited to: All cameras, VCR recorders/ players, photoflash equipment, photometers, spectrometers, photo tubes, and/or other similar devices using sensitive tubes or plates and film (still or movie), exposed or unexposed, as well as all related attachments or accessories. * Chemicals used for film development are NOT accepted for transport.	Yes – with exceptions*	Yes – with exceptions*	Yes

Item	Description	Carry-on?	Checked?	Requires Limited Liability Release
Portable Dialysis Machines	Portable dialysis machines may be transported at no charge when carried by itself or with other assistive devices, medications and/or medical supplies. These devices do not count towards the guest's baggage allowance. * These devices are NOT permitted for use on Spirit's aircraft.	Yes – with exceptions*	Yes	No

Item	Description	Carry-on?	Checked?	Requires Limited Liability Release
Portable Oxygen Concentrators	Portable Oxygen Concentrators (POC) are battery-powered concentrators that provide the user with a pulse flow of concentrated oxygen, without storing Oxygen . These items may be transported at no charge when carried by itself or with other assistive devices, medications and/or medical supplies. These devices do not count towards the guest's baggage allowance. To be used onboard, a POC must be on the FAA approved list or it must bear a permanent label on the exterior of the device containing the following certification statement in red lettering: <i>"The manufacturer of this POC has determined this device conforms to all applicable FAA acceptance criteria for POC carriage and use on board aircraft."</i> The labeling requirement does not apply to Portable Oxygen Concentrators on the FAA approved list. The FAA approved list is as follows:	Yes	Yes	No

Item	Description	Carry-on?	Checked?	Requires Limited Liability Release
	• Airsep Focus • AirSep FreeStyle • AirSep FreeStyle 5 • AirSep LifeStyle • Delphi RS-00400 • DeVilbiss Healthcare iGo • Inogen One • Inogen One G2 • Inogen One G3 • Inova Labs LifeChoice • Inova Labs LifeChoice Activox • International Biophysics LifeChoice • Invacare Solo2 • Invacare XP02 • Oxlife Independence Oxygen Concentrator • Oxus Inc. RS-00400 • Precision Medical EasyPulse • Respironics EverGo • Respironics Simply Go • SeQual Eclipse • SeQual eQuinox Oxygen System (model 4000) • SeQual Oxywell Oxygen System (model 4000) • SeQual SAROS • VBox Trooper Oxygen Concentrator			

Item	Description	Carry-on?	Checked?	Requires Limited Liability Release
Precision Instruments	Items include but are not limited to: Microscopes, oscilloscopes, meters, counters, polygraphs, electrographs, medical equipment and similar articles. * A limited liability release form is not required for medical equipment.	Yes	Yes	Yes – with exceptions*

Item	Description	Carry-on?	Checked?	Requires Limited Liability Release
Ski (Water or Snow) and Snowboard Equipment	One item of equipment will count as a checked bag. One item of ski equipment is considered: • One pair of skis, with one pair of ski poles, and one pair of ski boots; or • One snowboard and one pair snowboard boots. Bags containing skis or snowboards are exempt from oversize limits; however, oversize charges apply if the bag is greater than 62 linear inches. Overweight charges are applicable. <u>Note:</u> If boots are packed separately from ski/snowboard equipment, they must be in a ski/snowboard boot bag to be considered part of the one piece of checked baggage.	No	Yes	Yes

Item	Description	Carry-on?	Checked?	Requires Limited Liability Release
Scuba Diving Equipment	Compressed gas cylinders (scuba tanks), full or empty, will NOT be accepted for transport. * Sharp objects, such as unloaded spear guns, knives and tools, must be packed in checked baggage only, and must be sheathed or securely wrapped.	Yes – with exceptions*	Yes	Yes

Item	Description	Carry-on?	Checked?	Requires Limited Liability Release
Skateboards	Non-motorized/Non-battery operated skateboards will be accepted. *To be accepted as carry-on baggage, the skateboard must be within Spirit's carry-on size and must be stowed with the wheels up, preferably under the seat. If placed in the overhead bin, the skateboard must be wheels up and stowed in a way to prevent rolling out of the bin when it is reopened.	Yes – with exceptions*	Yes	Yes

Item	Description	Carry-on?	Checked?	Requires Limited Liability Release
Smart Bags / Battery-powered Baggage	Battery-powered baggage and smart bags (e.g., baggage with built in batteries) are NOT allowed for transport.	No	No	N/A

Item	Description	Carry-on?	Checked?	Requires Limited Liability Release
Surfing Equipment	Surfboards are included as part of the guest's standard baggage allowance and will be accepted for a special charge per direction. One bag containing up to two surfboards will be accepted. Oversize limits and charges are waived for surfing equipment. Overweight charges are waived for surfing equipment. Additional items packed inside a surfboard case are not considered part of the surfboard equipment and additional charges will apply. * Spirit reserves the right to refuse transportation of these items due to safety and/or operational limitations.	No	Yes – with exceptions*	Yes

Item	Description	Carry-on?	Checked?	Requires Limited Liability Release
Tennis Equipment		Yes	Yes	Yes

Item	Description	Carry-on?	Checked?	Requires Limited Liability Release
Tools/Power Tools	Items include but are not limited to: Axes, hatchets, cattle prods, crowbars, hammers, drills, table saws, screwdrivers, wrenches, and pliers.	No	Yes	Yes

Item	Description	Carry-on?	Checked?	Requires Limited Liability Release
Wheelchairs	In addition to the standard baggage allowance and at no charge, Spirit Airlines will accept wheelchairs and other mobility assistive devices (manual and electric/battery operated) as checked baggage on the same flight as the guest who uses the device, unless the guest requests stowage of his or her manual folding and collapsible wheelchair within the aircraft cabin. At the time of check-in, electric-powered wheelchairs must have cables disconnected and terminals protected against electrical shortages. Spirit strongly recommends that guests requiring this service check-in at least 90 minutes before departure. Guests must check-in at the departure gate at least 45 minutes prior to the (original) scheduled flight departure time. The battery must be disconnected and terminals protected against electrical shorting and must be contained in a leak proof box fastened securely to the wheelchair. It may be necessary to remove the battery if the wheelchair cannot be loaded, stowed, and unloaded in an upright manner. * Once one guest's manual folding and collapsible wheelchair has been accepted for accommodation in the passenger cabin, Spirit Airlines will accept one (1) additional manual folding and collapsible wheelchair as long as no other guests are displaced.	Yes – with exceptions*	Yes	No
Item	Description	Carry-on?	Checked?	Requires Limited Liability Release
Windsurfing Equipment	Windsurfing equipment is NOT accepted for transport.	No	No	N/A
Item	Description	Carry-on?	Checked?	Requires Limited Liability Release
Wood Carvings	* Guests transporting wood carvings to/from Jamaica are required to place the item(s) in checked baggage per Jamaican government regulations.	Yes – with exceptions*	Yes	Yes

Item	Description	Carry-on?	Checked?	Requires Limited Liability Release
Urns, Human/Animal Remains & Organs	Spirit will NOT accept human or animal remains and/or organs, with the exception of cremated human or animal remains being transported as follows: *Domestic Travel To be transported as carry-on baggage, the crematory container must undergo successful X-ray screening by TSA. If a container is made of a material that prevents screeners from clearly seeing what is inside, the container will not be allowed through the checkpoint. Per TSA guidance, out of respect to the deceased and their family and friends, under no circumstances will a TSA officer open the container even if the guest requests this be done. NOTE: Documentation from the funeral home is not sufficient to carry a crematory container through security and onto a plane without screening. To be transported as checked baggage, the crematory container must be successfully screened during the checked baggage screening process. The TSA will screen the container for explosive materials/devices using a variety of techniques; if cleared, it will be permitted as checked baggage only. The TSA recommends that guests transport remains in temporary or permanent containers constructed of light-weight materials such as plastic or wood that can be successfully x-rayed. International Travel Countries have different regulations and documentation requirements for receiving cremated remains. It is the guest's responsibility to obtain importation permission from the embassy (or appropriate government office) of the country to which they are traveling. Although the guest can contact the embassy or appropriate government office to complete the necessary legal paperwork, Spirit recommends that they acquire the services of a funeral director to assist with the necessary arrangements.	Yes – with exceptions*	Yes – with exceptions*	No

7.6 Restricted Articles

The following list is classified as hazardous and may not be carried in baggage. The list is not all-inclusive and Spirit may reject any substance it deems to be a threat to safety.

- 7.6.1. Liquor products over 140 proof.
- 7.6.2. Gasoline-powered tools.
- 7.6.3. Compressed gases.
- 7.6.4. Corrosives (such as acids and wet batteries).

- 7.6.5. Explosives (such as dynamite, but also including fireworks).
- 7.6.6. Flammables (such as matches and lighter fuels).
- 7.6.7. Poisons.
- 7.6.8. Magnetic and radioactive materials and all other items by government regulations.
- 7.6.9. Additional prohibited or restricted hazardous or dangerous goods and materials can be found in the following resources in effect at the time of travel:
 - a) DOT hazardous materials regulations (49CFR 171-177)
 - b) IATA Dangerous Goods Regulations
 - c) TSA Permitted and Prohibited Items

7.7 Limitations of Liability

Except to the extent inconsistent with applicable laws, Spirit Airlines will not accept liability for the following:

- a) Damage caused to baggage as a result of normal wear and tear during the course of any of the operations of carriage. Normal wear and tear includes, but is not limited to, minor cuts, scratches, scuffs, dents, punctures, marks and soiling that do not impact the functionality of such baggage.
- b) Loss of or damage to:
 - i. Protruding parts such as wheels, feet, external pockets, pull and extending handles, hanger hooks, external locks, pull straps and security straps if this loss or damage occurred as a result of normal wear and tear.
 - ii. Articles due to a manufacturer's defect or due to overpacked baggage, or for the destruction, loss or damage that results from an inherent defect, quality, or vice of the baggage.
 - iii. Articles which are strapped, fastened or otherwise secured to other Checked Baggage which are not independently tagged and/or packaged (e.g., sleeping bags, umbrellas).
 - iv. Unchecked baggage (baggage that is in the custody of the guest and includes carry-on baggage) unless such damage is caused by our negligence, which excludes damage resulting from turbulence or shifting of items during flight.
- c) Loss, damage, or delay as the result of actions taken by the TSA, Customs, or other governmental agencies
- d) Damage caused by a passenger's property, whether such damage is to the passenger's own property or to other's property.
- e) Damage resulting from liquids on or in baggage, including from weather (e.g., rain, snow).

- f) Claims of missing or damaged articles if a passenger's checked baggage is not damaged, delayed, or lost.
- g) Claims of damage of the inside contents of a hard-sided case if the outside of the case is not damaged.
- h) Claims of damage to or missing articles from car seats, strollers, and folding wagons when carried as checked baggage.
- i) Interim expenses incurred by a guest with delayed baggage if the guest fails to meet the check-in time requirements outlined in [section 2.3.3](#).

7.7.1. Domestic Baggage – Limitation of Liability

7.7.1.1. Spirit assumes no responsibility or liability for the following items in or as checked or carry-on baggage:

- Antiques,
- Artifacts,
- Art supplies,
- Backpacks or knapsacks not designed for travel (e.g., made from plastic, vinyl, or other easily torn material, with aluminum frames or other easily bent material, with protruding straps or buckles.)
- Blueprints, maps, historical documents
- Books,
- Business documents,
- CD/DVDs
- Business equipment and business samples
- China, glass, ceramics, pottery, and other related items.
- Collectibles,
- Commercial items,
- Computer hardware and software, including laptops, and accessories,
- Cosmetics,
- Drugs prohibited by federal and/or state law,
- E-cigarettes and other battery-powered smoking devices,
- Electronic equipment and accessories including cell phones, e-readers, electronic games, and other related items.
- Eyeglasses, binoculars, sunglasses, (prescription or non-prescription), contact lenses, and all other eyewear and eye/vision devices.
- Furs and fur products,
- Fragile items ([see section 7.4](#))
- Garment bags not designed for travel
- Heirlooms,
- Human organs,
- Irreplaceable items,
- Jewelry,
- Keys,
- Liquids, including alcohol/liquor

- Machinery (including parts),
- Manuscripts,
- Medication
- Medical equipment (not used as assistive devices pursuant to 14 CFR 382.3);
- Money, gift cards negotiable papers, and securities,
- Musical instruments,
- Orthodontics,
- Perfumes,
- Perishable items, ([see section 7.4](#))
- Photos and personal documents
- Photographic, cinematographic, audio, video, equipment and accessories, cameras and related items.
- Precious metals and stones,
- Publications,
- Samples,
- Silverware,
- Tobacco products,
- Tools, battery powered hand tools, toolboxes and containers,
- Watches and timepieces.
- Works of art, such as paintings and sculptures, or
- Similar valuable, fragile, or perishable items or items not packaged in accordance with other rules described in this contract.

7.7.1.2. For travel wholly between U.S. points, liability for loss, delay or damage to checked baggage is limited to \$4,700 per guest holding a confirmed reservation.

7.7.2 International Baggage— Limitation of Liability

7.7.2.1. Spirit will NOT accept any agricultural items, perishable items or any product that does not conform to the Customs and/or Agricultural government entities of any foreign country that the guest is entering into or leaving from on a Spirit flight.

7.7.2.2. Limitations on the number, size and weight of checked baggage apply.

7.7.2.3. For travel to/from international destinations, the following will apply:

- a) For international travel (including domestic portions of international itineraries) to which the Warsaw Convention applies:

Liability for loss, delay or damage to checked baggage is limited to approximately \$9.07 per pound for checked baggage and \$400 per guest for unchecked baggage.

Liability is for a maximum of 50 lbs/22.6 kgs (\$453.50) per checked bag, unless the guest pays an additional checked

baggage charge, and the precise weight of the baggage is noted on the guest's baggage claim check.

- b) For international travel (including domestic portions of international itineraries) to which the Montreal Convention applies:

Liability for loss, delay or damage to checked baggage is limited to 1,519 Special Drawing Rights ("SDR").

For international travel, the weight of each piece of checked baggage is presumed to be the applicable standard baggage allowance set forth above. This weight will establish the carrier's maximum liability, unless excess weight is clearly noted on the Guest's claim check, and additional charges are paid. If the weight of the baggage is not recorded on the Baggage Check, then it is presumed that the weight of the baggage falls within the standard baggage allowance set forth above.

- c) For international travel to which the Montreal Convention and the Warsaw Convention do not apply, the limit specified in [section 7.7.1.2](#) above will apply.

7.7.2.4 Spirit does NOT accept declarations of higher value.

7.8 Portable Electronic Devices

7.8.1 Use of Portable Electronic Devices Onboard the Aircraft

- Small authorized PEDs are devices under two (2) pounds and are of a size that can easily be placed in a seat pocket along with the other materials that are normally found in the seat pocket (Passenger Safety Information Card, Menu and/or airsickness bag). They include devices like tablets, readers and mobile phones and may be used during all phases of flight including taxi, take-off and landing. However, if using them during taxi, take-off and landing, you must secure these devices by holding them, putting them in your pocket or holster, or placing them in a seatback pocket.
- Large authorized PEDs are devices two (2) pounds or more such as full-size laptops. They must be turned off and stowed during taxi, takeoff and landing. You can stow them by having them under the seat in front of you or in an overhead compartment. These devices may be used about 10,000 feet when authorized by a Flight Attendant announcement.
- On all flights operating outside U.S. airspace, portable electronic devices cannot be used during taxi, takeoff and landing, but may be used above 10,000 feet when authorized by a Flight Attendant announcement.
- Headsets or earphones (buds) are required for any audible portable device and any cords or accessories must not impede emergency egress.
- Devices must have their cellular network service disabled, commonly known as "Airplane Mode", from the time the aircraft door is closed for departure

from the gate until the aircraft is taxiing to the gate upon arrival when authorized by a Flight Attendant announcement.

- Cell phone use is still limited and calls cannot be made during times when cellular network is to be disabled.
- Items which may not be operated at any time inside the aircraft include: TV receivers, remote controlled toys, e-cigarettes, radio transmitters and personal air purifiers.
- Due to safety concerns, guests must comply with all crewmembers instructions regarding the use of portable electronic devices.
- The DOT, with the FAA and Pipeline and Hazardous materials Safety Administration (PHMSA) has issued an emergency order banning all Samsung Galaxy Note7 smartphone devices for air transportation. Samsung Galaxy Note7 devices may not be transported on anyone's person, in carry-on baggage, or in checked baggage on all flights to, from, or within the United States.

8. SCHEDULE CHANGES, DELAYED FLIGHTS AND CANCELED FLIGHTS

8.1 Spirit Airlines Responsibility for Schedules and Operations

Times shown in a timetable or elsewhere are not guaranteed and form no part of the terms of transportation. Spirit may, without notice, substitute alternate carriers or aircraft, and may alter or omit stopping places shown on the reservation. Schedules are subject to change without notice. Spirit is not responsible or liable for making connections (on its own flights or flights of any other carrier), or for failing to operate any flight according to schedule, or for changing the schedule of any flight.

8.2 Rebooking

When a guest holding a confirmed reservation on a Spirit flight which is delayed because of a schedule irregularity (including but not limited to, a missed connection, flight cancellation, omission of a scheduled stop, substitution of equipment, or schedule change), Spirit will rebook the guest on Spirit's first flight on which seats are available to the guest's original destination without additional charge. Our staff will rebook guests on alternate Spirit flights, either direct to the destination or via connections through other airports to best accommodate the guest's needs at no additional charge.

Guests may also have the option to obtain a refund consistent with [section 10.2.3](#). A change may be made to an itinerary without a charge and/or fare difference when the itinerary was affected by a cancelled flight, a downgrade in travel option, a change in the origination or arrival airport, connecting points added to the itinerary, a flight number change, an eligible schedule change (greater than one hour from the original departure time) or a delayed flight (greater than two hours from the original departure time) provided:

- The same departure and arrival airports are booked and;

- The itinerary is rebooked within Spirit's authorized date ranges (currently within 7 days of the departure date).

With limited exceptions, Spirit will not reimburse guests for flights that they book on other carriers.

8.3 Amenities/Services for Guests

Spirit assumes no responsibility for personal or business expenses incurred by a guest as a result of a flight delay, cancellation, or schedule change. Spirit may provide limited amenities and services, which may be required by certain guests in order to maintain their safety, health and welfare. Amenities provided by Spirit are provided as a courtesy to the guest and are not to be considered an obligation of Spirit.

In the process of rebooking on another Spirit flight, Spirit will provide overnight accommodation(s) or will reimburse reasonable costs of overnight accommodation(s) for non-local guests in the event of a controllable cancellation or an extended controllable delay departing after the scheduled departure day. If the hotel accommodation does not include shuttle service to and from the airport, we will provide ground transportation to and from the hotel at no additional cost or we will honor reasonable requests for reimbursement.

For delays of three hours or more or a cancellation due to causes within our control, Spirit will provide a meal voucher redeemable at any establishment that sells food and accepts the vouchers. However, if the cancellation or misconnection is caused by severe weather, Air Traffic Control decisions or other issues or causes outside of Spirit's control, we do not offer such accommodations. We will, nevertheless, make reasonable efforts to provide information enabling guests to secure accommodations on their own. No lodging will be provided to a guest on any Spirit flight which is delayed or canceled in the originating city on the guest's reservation.

9. **DENIED BOARDING**

A flight is considered "oversold" when more guests hold confirmed reservations than there are seats available. When this happens, Spirit looks for volunteers to take a different flight in exchange for compensation of Spirit's choosing. If not enough guests volunteer, some may be denied in accordance with DOT regulations specified below. Spirit follows all required procedures and compensation guidelines.

Whenever possible, Spirit will make every effort to avoid removing guests who have already boarded.

9.1 Voluntary

If a flight is oversold, no one may be denied boarding against their will until airline personnel first ask for volunteers who will give up their reservations willingly in exchange for payment of Spirit's choosing.

9.2 Involuntary

If a flight is oversold and there are not enough volunteers, other guests may be denied boarding involuntarily.

Priority to remain booked on the flight is given to certain reservations that include guests who:

- Are unaccompanied minors
- Have a qualified disability
- Booked or paid to upgrade to “Spirit First” or “Premium Economy” seating
- Have Free Spirit Gold or Silver status
- Checked in earliest

Exception: if the oversold situation is due to a substitution of a smaller capacity aircraft for safety or operational reasons known in advance of three hours, the time of booking may be considered.

Spirit reserves the right to modify the manner of priority per 14 C.F.R Section 250.3. The selection of guests for involuntary denial of boarding is solely at Spirit’s discretion.

9.3 Denied Boarding Regulations

9.3.1 Compensation for Denied Boarding

If you have been denied a reserved seat on Spirit Airlines, you are probably entitled to monetary compensation. In the case of an oversold flight, Spirit will provide information that explains the airline’s obligation and the guest’s rights in the case of an oversold flight, in accordance with regulations of the *DOT*.

9.3.2 Volunteers and Boarding Priorities

9.3.2.1 If a flight is oversold (more guests hold confirmed reservations than there are seats available), no one may be denied boarding against his or her will until airline personnel first ask for volunteers who will give up their reservation willingly, in exchange for compensation of the airline’s choosing. If there are not enough volunteers, other guests may be denied boarding involuntarily in accordance with the boarding priority of Spirit Airlines detailed in this section (Section 9 – Denied Boarding).

9.3.3 Compensation of Involuntary Denied Boarding

If you are denied boarding involuntarily, you are entitled to a payment of “denied boarding compensation” from the airline unless:

- 1) you have not fully complied with the airline’s ticketing, check-in and reconfirmation requirements, or you are not accepted for transportation under the airline’s usual rules and practices; or
- 2) you are denied boarding because the flight is canceled; or
- 3) you are denied boarding because a smaller capacity aircraft was substituted for safety or operational reasons; or

- 4) you are offered accommodations in a section of the aircraft other than specified in your ticket, at no extra charge (a guest seated in a section for which a lower travel option is charged must be given an appropriate refund); or
- 5) Spirit is able to place you on another flight or flights that are planned to reach your next stopover or final destination within one hour of the planned arrival time of your original flight.

9.3.4 Amount of Denied Boarding Compensation

Domestic Transportation

Guests traveling between points within the United States (including the territories and possessions) that are denied boarding involuntarily from an oversold flight are entitled to:

- 1) no compensation if the carrier offers alternate transportation that is planned to arrive at the guest's destination or first stopover not later than one hour after the planned arrival time of the guest's original flight;
- 2) at least the lower amount of 200% of the travel option to the guest's destination or first stopover or \$1,075, if the carrier offers alternate transportation that is planned to arrive at the guest's destination or first stopover more than one hour but less than two hours after the planned arrival time of the guest's original flight; or
- 3) at least the lower amount of 400% of the travel option to the guest's destination or first stopover or \$2,150, if the carrier does not offer alternate transportation that is planned to arrive at the airport of the guest's destination or first stopover less than two hours after the planned arrival time of the guest's original flight.

Length of Arrival Delay to Final Destination Due To Over Sale	Amount of Compensation
0 to 1 hour arrival delay	No compensation
1 to 2 hour arrival delay	At least the lower amount of 200% of travel option to destination or \$1,075
Over 2 hour arrival delay	At least the lower amount of 400% of travel option to destination or \$2,150

International Transportation

Guests traveling from the United States to a foreign point who are denied boarding involuntarily from an oversold flight originating at a U.S. airport are entitled to:

- 1) no compensation if the carrier offers alternate transportation that is planned to arrive at the guest's destination or first stopover not later than one hour after the planned arrival time of the guest's original flight;
- 2) at least the lower amount of 200% of the travel option to the guest's destination or first stopover or \$1,075, if the carrier offers alternate transportation that is planned to arrive at the guest's destination or first stopover more than one hour but less than four hours after the planned arrival time of the guest's original flight; or

- 3) at least the lower amount of 400% of the travel option to the guest's destination or first stopover or \$2,150, if the carrier does not offer alternate transportation that is planned to arrive at the airport of the guest's destination or first stopover less than four hours after the planned arrival time of the guest's original flight.

Length of Arrival Delay to Final Destination Due To Over Sale	Amount of Compensation
0 to 1 hour arrival delay	No compensation
1 to 4 hour arrival delay	At least the lower amount of 200% of travel option to destination or \$1,075
Over 4 hour arrival delay	At least the lower amount of 400% of travel option to destination or \$2,150

9.3.5 Alternate Transportation

"Alternate transportation" is air transportation with a confirmed reservation at no additional charge (by any scheduled airline licensed by DOT), or other transportation accepted and used by the guest in the case of denied boarding.

9.3.6 Method of Payment

Except as provided below, the airline must give each guest who qualifies for involuntary denied boarding compensation a payment by cash, digital prepaid card, or check for the amount specified above, on the day and at the place the involuntary denied boarding occurs. In most cases, payment is made by electronic transfer to the guest's debit card or a prepaid digital card. If the guest objects to an electronic payment, payment will be by check.

If the airline arranges alternate transportation for the guest's convenience that departs before the payment can be made, the payment shall be sent to the guest within 24 hours.

The air carrier may offer free or discounted transportation in place of the Involuntary Denied Boarding Compensation payment. In that event, the carrier must disclose all material restrictions on the use of the free or discounted transportation before the guest decides whether to accept the transportation in lieu of Involuntary Denied Boarding Compensation. The guest may insist on the Involuntary Denied Boarding Compensation or refuse all compensation.

9.3.7 Guest's Options

Acceptance of the compensation may relieve Spirit Airlines from any further liability to the guest caused by its failure to honor the confirmed reservation. However, the guest may decline the payment and seek to recover damages in a court of law or in some other manner.

10. REFUNDS

10.1 Voluntary

Refunds will be made in accordance with applicable fare rules. No refunds will be made for non-refundable reservations.

10.2 Involuntary

In the event that Spirit is unable to provide a previously confirmed seat and is unable to reroute the guest via Spirit, Spirit will refund as indicated below:

10.2.1. If no portion of the reservation has been used, the refund will be equal to the fare paid by the guest.

10.2.2. If a portion of the reservation has been used, the refund will be equal to the amount of the unused portion.

10.2.3. Guests involved in a Spirit Airlines cancellation or delay (change occurs within seven (7) days of flight departure) in excess of two (2) hours, a schedule change (change occurs more than seven (7) days from scheduled departure) in excess of one (1) hour, a change in origination or arrival airport, connecting points added to an itinerary, a flight number change, or a downgrade in travel option, will have three (3) options available to them: 1) a refund 2) re-accommodation, 3) a credit for future travel. If a guest rejects or fails to respond to an offer of the changes to their flight, re-accommodation of the flight, or a created for future in these instances, and the original flight and re-accommodated flight depart without the guest, a refund will be automatically issued.

10.2.4. Refunds will only be issued to the form of payment used to complete the original purchase.

10.3 Ancillary Services

In the event that Spirit is unable to provide a previously confirmed ancillary service through no fault of the guest, a refund may be issued. [If an individual guest did not receive the service, the guest must reach out to us at www.spirit.com/help to request a refund.](http://www.spirit.com/help-to-request-a-refund) If the ancillary service was not provided to the entire flight, an automatic refund to the original form of payment will be issued to the guest. Ancillary services include optional services that are purchased directly from Spirit and are not included in the travel option. Services purchased from a third-party service provider are not included.

10.4 Foreign Currency Refunds

10.4.1 Spirit will pay the refund in the form that was used in purchasing the original reservation; however, cash refunds will be issued in the form of a check. Spirit will observe any refund restriction that may be published in the applicable rules governing the original transportation document.

10.4.2 All refunds will be subject to government laws, rules, regulations, or orders of the country in which the reservation was originally purchased and of the country in which the refund is being made.

10.5 Refund Contacts

Guests may request a refund by contacting Spirit Guest Care at 855-728-3555 or the request may be made in writing via [our website at www.spirit.com](http://www.spirit.com), or by writing to Corporate Guest Relations, Attention: Refunds, 1731 Radiant Drive, Dania Beach, FL 33004.

10.6 No Show Service Charge

10.6.1 In situations involving a No-Show, in addition to the provisions of this section 10 and as otherwise specified in this Contract of Carriage, the following shall apply:

- a. Automatic Refund - In the case of a No-Show, the refund described under this section 10 shall be automatically refunded to the purchaser.
- b. There will be an automatic imposition of a No-Show Service Charge. A No-Show Service Charge will apply with respect to a reservation (or a segment of the itinerary for which the No-Show applies) in the amount of the fare plus optional services and all government and carrier imposed charges, taxes and fees.
- c. Refund - The refund described in this section 10 shall be given, but will be netted against the No-Show Service Charge in a separate transaction.
- d. The payment of the No-Show Service Charge shall not entitle the purchaser (and if different, the guest or other party to whom a refund would otherwise be due) to transportation.

10.6.2 To the extent required by applicable law, including Code § 6415(a) and the regulations promulgated thereunder, the purchaser (and, if different, the guest or other party to whom a refund would otherwise be due) hereby consents to Spirit recovering any allowance of a credit or refund of any overpayment of governmental fees or tax imposed, including pursuant to Code § 4261, including in each case which overpayment arises directly or indirectly as a result of a No-Show as contemplated in this Contract of Carriage.

10.7 Automatic Refunds

For guests due an automatic refund, who made their purchase (including any charges associated with the travel option) with a credit card, Spirit will process the credit within seven (7) business days after their flight was scheduled to depart for cancelled flights or if their rebooked flight departs without the guest boarding. Due to various billing cycles, a credit card statement may not reflect a refund immediately. For guests due an automatic refund, who made their purchase (including any charges associated with the travel option) with cash, Spirit will issue a refund check or direct to their U.S. issued debit card within seven (7) calendar days after their flight was scheduled to depart for cancelled flights or if their rebooked flight departs without the guest. For guests due an automatic refund, who made their purchase (including any charges associated with the travel option) with any other form of payment, Spirit will issue a refund back to that original form of payment within 20 calendar days after their flight was scheduled to depart for cancelled flights or if their rebooked flight departs without the guest.

11. NON-REVENUE GUESTS

Non-revenue guests refers to direct Spirit team members, their eligible dependents, buddy pass holders, and other airline employees who will be enplaned on a flight subject to availability of space at departure time (standby), free of charge or at a reduced rate, with the exception of any applicable booking fees, international taxes and imputed income. Certain optional service

charges may also be applicable. Team members are encouraged to review Spirit's Travel Policy prior to travel.

Every effort will be made to seat non-revenue guests, but only after all revenue guests have been assigned seats. Non-revenue guests are not entitled to service recovery compensation, denied boarding compensation, or amenities related to trip interruptions.

Liability limits shall be the same for non-revenue guests as revenue guests. Please refer to [section 12](#) or, in the case of baggage, to [subsection 7.7](#) herein for additional information.

12. DISCLAIMER OF CONSEQUENTIAL DAMAGES, MODIFICATIONS, AND LIMITATIONS OF LIABILITY

12.1 Disclaimer of Consequential Damages

Purchase of a reservation does not guarantee transportation. Spirit shall in no event be liable for direct, indirect, special or consequential damages resulting from the performance or delay in performance of, or failure to perform, transportation of guests and other services whether or not Spirit has knowledge that such damages might be incurred.

12.2 Disclaimer of Modifications

12.2.1 Spirit Airlines Contract of Carriage is subject to change without notice.

12.2.2 Spirit shall not be liable for false, misleading or inaccurate information provided by travel agencies and third party websites.

12.2.3 Information provided outside of this contract, including via links provided herein, are not considered part of Spirit's Contract of Carriage.

12.3 Limitations of Liability

Spirit's liability for any accident, injury, or death is governed by applicable laws.

12.3.1 If the guest's journey involves an ultimate destination or stop in a country other than the country of departure, the Warsaw Convention or the Montreal Convention may be applicable.

The convention governs, and in most cases limits, the liability of carriers in respect of death, personal injury to guests, and for destruction or loss of, or damage to, baggage, and for delay of guests and baggage, as follows:

- The financial limits for any damages, including recoverable compensatory damages sustained in the case of death or bodily injury of a passenger, shall not exceed 151,880 Special Drawing Rights (SDR) for each passenger.
- In the case of destruction, loss of, or damage or delay to baggage, 1,519 Special Drawing Rights (SDR).
- In the case of delay to a guest's journey, 6,303 Special Drawing Rights (SDR) per guest.

12.4 Waiver/Modification of Terms of Contract of Carriage

No employee of Spirit has the authority to modify, waive or alter any term of this Contract of Carriage unless authorized by an officer of Spirit Airlines.

13. CHOICE OF LAW AND VENUE

- 13.1 This Contract of Carriage will be governed by and construed in accordance with the laws of the United States of America and the State of Florida without regard to conflict of law principles or law.

All right to trial by jury in any action, proceeding or counterclaim arising out of or in connection with this Contract of Carriage is irrevocably waived.

- 13.2 No Class Action – Any case brought pursuant to this Contract of Carriage, Spirit's Tarmac Delay Plan, or Spirit's Guest Service Plan must be brought in a party's individual capacity and not as a plaintiff or class member in any purported class or representative proceeding.

- 13.3 Time Limit – No legal action may be brought by a passenger against Spirit or its directors, officers, employees or agents unless commenced within six (6) months from the date of the alleged incident.

14. SPIRIT AIRLINES TARMAC DELAY PLAN

Spirit Airlines Contingency Plan for Lengthy Tarmac Delays includes the following:

- 14.1 For domestic flights, Spirit Airlines shall provide guests on a flight experiencing a tarmac delay at a U.S airport the opportunity to deplane before the tarmac delay exceeds three hours in duration, unless:
- a) For departing flights, the flight begins to return to a suitable disembarkation point no later than three hours (for domestic flights) after the main aircraft door is closed in order to deplane passengers. If the aircraft is in an area that is not under the carrier's control, the aircraft has begun to return to a suitable disembarkation point when a request is made to the Federal Aviation Administration control tower, airport authority, or other relevant authority directing the aircraft's operations. If the aircraft is in an area that is under the carrier's control, the aircraft has begun to return to a suitable disembarkation point when the pilot begins maneuvering the aircraft to a suitable disembarkation point;
 - b) The pilot-in-command determines that deplaning passengers at a suitable disembarkation point would jeopardize passenger safety or security, or there is a safety-related or security-related reason why the aircraft cannot leave its position on the tarmac to deplane passengers; or
 - c) Air traffic control advises the pilot-in-command that returning to a suitable disembarkation point to deplane passengers would significantly disrupt airport operations.

14.2 For all international flights operated by Spirit Airlines that depart from or arrive at a U.S. airport, Spirit Airlines shall provide Guests on a flight experiencing a tarmac delay the opportunity to deplane before the tarmac delay exceeds four (4) hours in duration, unless:

- a) For departing flights, the flight begins to return to a suitable disembarkation point no later than four hours (for international flights) after the main aircraft door is closed in order to deplane passengers. If the aircraft is in an area that is not under the carrier's control, the aircraft has begun to return to a suitable disembarkation point when a request is made to the Federal Aviation Administration control tower, airport authority, or other relevant authority directing the aircraft's operations. If the aircraft is in an area that is under the carrier's control, the aircraft has begun to return to a suitable disembarkation point when the pilot begins maneuvering the aircraft to a suitable disembarkation point;
- b) The pilot-in-command determines that deplaning passengers at a suitable disembarkation point would jeopardize passenger safety or security, or there is a safety related or security related reason why the aircraft cannot leave its position on the tarmac to deplane passengers; or
- c) Air traffic control advises the pilot-in-command that returning to a suitable disembarkation point to deplane passengers would significantly disrupt airport operations.

14.3 For all flights covered by this plan, Spirit Airlines shall do the following:

- a) Provide adequate food and potable water no later than two (2) hours after guests no longer have the opportunity to deplane (in case of a departure) or the aircraft touches down (in case of an arrival) if the aircraft remains on the tarmac, unless the pilot-in-command determines that safety or security considerations preclude such service;
- b) For all flights, Spirit Airlines shall ensure operable lavatory facilities, as well as adequate medical attention if needed, during a tarmac delay;
- c) For all flights, Spirit Airlines shall notify the passengers on board the aircraft during a tarmac delay regarding the status of the delay when the tarmac delay exceeds 30 minutes, and thereafter Spirit Airlines may provide subsequent updates, including flight status changes, as Spirit Airlines deems appropriate;
- d) Ensure that the guests on the delayed flight will receive timely notification each time the opportunity to deplane actually exists at all suitable disembarkation points for all departing flights and diversions.
- e) Ensure comfortable cabin temperatures by keeping engines or auxiliary power units (APUs) running to maintain comfortable temperatures while the aircraft is away from the gate. While the aircraft is parked at the gate, comfortable cabin temperatures will be maintained by utilizing the gate air attached to the aircraft or by running the air conditioning packs on the aircraft.

14.4 Spirit Airlines has sufficient resources to implement the plan; and

14.5 Spirit Airlines' plan has been coordinated with the following:

- a) Airport authorities (including terminal facility operators where applicable) at each U.S. large hub airport, medium hub airport, small hub airport and non-hub airport that Spirit Airlines serves, as well as its regular U.S. diversion airports;
- b) U.S. Customs and Border Protection (CBP) at each large U.S. hub airport, medium hub airport, small hub airport and non-hub airport that is regularly used by Spirit's international flights, including diversion airports; and
- c) The Transportation Security Administration (TSA) at each U.S. large hub airport, medium hub airport, small hub airport and non-hub airport that Spirit Airlines serves, including diversion airports.

15. Spirit Airlines Guest Service Plan

Content of Guest Service Plan

- 1. Offer the lowest fare available.
- 2. Notify guests of known delays, cancellations and diversions.
- 3. Deliver baggage on time.
- 4. Allow reservations to be held or cancelled without penalty for a defined amount of time.
- 5. Provide prompt reservation refunds.
- 6. Disclosure to guests who are entitled to a refund
- 7. Properly accommodate guests with disabilities and other special needs, including during tarmac delays, and properly refund guests with disabilities along with their travel companions when eligible.
- 8. Meet guests' essential needs during lengthy tarmac delays.
- 9. Handle "bumped" guests with fairness and consistency in the case of oversales.
- 10. Disclose refund policies, travel itinerary, cancellations, Frequent Flyer Rules, aircraft seating configurations and lavatory availability.
- 11. Notifying guests in a timely manner of changes in their travel itineraries.
- 12. Ensure responsiveness to guest complaints.
- 13. Identify the services to mitigate guest inconveniences resulting from cancellations and misconnects.
- 14. Military Benefits

1. Offer the Lowest Available Fare

Lower fares may be available at the airport. Certain fares such, as Internet promotions, are not accessible to the Reservations Agent and may only be purchased at [our web site, www.spirit.com](http://www.spirit.com).

Recommendations:

If you have time to plan and are flexible with your travel dates, booking travel and purchasing your reservations in advance may result in a lower fare, especially during peak travel seasons and holidays.

2. Notify Guests of Known Delays, Cancellations and Diversions

We will give our guests, whether at the airport, onboard an aircraft, or elsewhere with computer or telephone access, the best available information regarding delays and cancellations in a timely manner.

Because we know that timely and accurate communication regarding travel interruptions is important, we make every reasonable effort to provide guests and employees with the most accurate, up-to-date flight information as quickly and frequently as possible.

Recommendations:

Prior to your trip, you can visit our Flight Information page on [Spirit's website \(www.spirit.com\)](http://www.spirit.com) for flight and travel information. When making your reservations, providing Spirit with your contact information (phone numbers and/or e-mail address) can help us reach you in the event that a delay or cancellation becomes apparent before you leave for the airport or while you are in transit. Simply enter the information when making a reservation online at [Spirit's website \(www.spirit.com\)](http://www.spirit.com) or give it to your Spirit Reservations Agent.

If a flight is delayed or cancelled, Spirit works automatically to re-accommodate guests in advance when possible. If you miss your connection due to a delayed flight, or if your flight is cancelled, a new boarding pass for your revised itinerary may be obtained at the airport.

3. Deliver Baggage On Time

We strive to ensure that all checked baggage arrives at your final destination on time. If for some reason your bag does not arrive on your flight, we will make every reasonable effort to return it to you within 12 hours for domestic flights and 15 or 30 hours for international flights consistent with the requirement under 14 CFR Part 260.5.

In the event your baggage does not arrive at your destination with you, please file a delayed baggage report to immediately initiate a search for the missing piece(s). Representatives will be available during posted hours to assist guests who require assistance with mishandled baggage. Once your belongings are located, they will be returned to you as quickly as possible and we will reimburse reasonable expenses you incur due to the delay in returning your bag as required either for domestic flights or applicable international agreements, and reimburse you for any fee charged to transport a bag if the bag is lost. Retain your baggage claim receipts for tracing and settlement, if necessary.

If your baggage cannot be located within five (5) days, you will need to complete the online claim form (see Spirit's Contract of Carriage ([section 7.3.7](#)) so that Central Baggage can assist with advanced tracing.

[The online claim form can be found online at: www.spirit.com/bagclaim.](http://www.spirit.com/bagclaim)

For further information pertaining to delayed, lost and damaged baggage, see Spirit's Contract of Carriage [section 7.3.5](#). For further information pertaining to limitations of liability, see Spirit's Contract of Carriage [section 7.7](#).

Recommendations:

We recommend you attach a baggage identification tag to each of your bags that clearly displays your name, address and telephone number. In addition, we suggest you place this same information and a copy of your itinerary inside the bags.

Be sure to carry necessities such as medication, keys and passports, as well as cameras, electronics, iPods, laptop computers, jewelry, cash and personal documents with you on the aircraft.

Always use baggage designed to withstand the stress of airport baggage handling systems and avoid over-packing.

4. Allow Reservations to be Held or Cancelled Without Payment

Spirit does not hold reservations without payment.

Refunds are allowed for reservations made seven (7) days (168 hours) or more prior to your departure, provided that you make the refund request within 24 hours of your initial reservation.

5. Provide Prompt Ticket Refunds

We will make every effort to provide prompt refunds in the original form of payment when a ticket or ancillary service fee refund, including a checked bag fee refund, are due pursuant to 14 CFR 260. If you are eligible for a refund, Spirit will disclose your refund eligibility when you are offered any alternative transportation, travel credit, voucher, or other compensation in lieu of a refund. Spirit will not retain a processing fee for issuing refunds that are due.

For guests due a refund, who purchased their reservations (including any charges associated with the travel option) with a credit card, Spirit will process the credit within seven (7) business days. Due to various billing cycles, a credit card statement may not reflect a refund immediately.

For guests due a refund, who purchased their reservation (including any charges associated with the travel option) with cash, Spirit will issue a refund check within 20 calendar days of Spirit receiving your refund request.

6. Disclosure to Guests who are Entitled to a Refund

Spirit Airlines will disclose to guests their refund eligibility when offering alternative transportation, travel credits, vouchers, or other compensation in lieu of refunds consistent

with the requirement in [14 CFR 260.7](#). Any material restrictions, conditions, or limitations on travel credits, vouchers, or other compensation offered, regardless of whether consumers are entitled to a refund as described in [14 CFR 260.8](#) and [14 CFR 262.8](#) will also be disclosed to the guest.

7. Properly Accommodate Guests with Disabilities and Other Special Needs, including during Tarmac Delays and Properly Refunding Guests with Disabilities along with their Travel Companions when Eligible

We will provide our guests who have special needs, including guests with disabilities and unaccompanied minors, with the level of attention, respect and care they require. For further information pertaining to minors traveling unaccompanied, see Spirit's Contract of Carriage [section 5.2](#).

Spirit's policies and procedures are in accordance with 14 CFR Part 382, Nondiscrimination on the Basis of Disability in Air Travel, which implements the Air Carrier Access Act. A copy of 14 CFR Part 382 may be obtained from the DOT by any of the following means:

1. Calling from within the United States, by telephone via the Toll-Free Hotline for Air Travelers with Disabilities at 1-800-778-4838 (voice) or 1-800-455-9880 (TTY)
2. Calling the Aviation Consumer Protection Division at 202-366-2220 (voice) or 202-366-0511 (TTY)
3. Writing to the Air Consumer Protection Division, C-75, U.S. Department of Transportation, 1200 New Jersey Ave. SE, West Building, Room W96-432, Washington, DC 20590
4. [Visiting the Aviation Consumer Protection Divisions' website at https://www.transportation.gov/airconsumer](https://www.transportation.gov/airconsumer).

Recommendations:

When making your reservations, be sure to notify Spirit of any special needs you may have. This will alert our employees to your circumstances so they can better prepare to assist you when you arrive at the airport. To assist Spirit in providing you with prompt assistance, please notify a Spirit team member of any special needs you may have upon your arrival to the airport.

Spirit will properly inform guests with disabilities if entitled to a refund and process the refund to the guest with the disability and their travel companions on the same reservation who do not want to continue travel without the guest with the disability as explained in section 4.6.3 in the Contract of Carriage and as required by 14 CFR Part 260.6(c).

8. Meet Guests' Essential Needs during Lengthy On-Board Delays

Spirit is committed to operating a reliable schedule for every guest. Weather, Air Traffic Control and other issues can cause delays and cancellations. Our commitment is to make our guests who experience long on-aircraft delays as comfortable as possible. Spirit has a

contingency plan to meet guest's essential needs during lengthy tarmac delays. For more information on our commitment to you, please see Spirit's Contract of Carriage [section 14](#).

When an on-aircraft delay occurs, we will manage the situation aggressively to minimize delays of greater than two (2) hours and make every reasonable effort to prevent those with longer durations. In the event of a lengthy delay, to provide food, water, restroom facilities and access to medical treatment for Guests onboard an airplane. For delays more than three (3) hours domestically or more than four (4) hours internationally, Guests will be allowed to deplane, subject to the Captain's and Air Traffic Control's concurrence.

Recommendations:

While Spirit offers food onboard for purchase, guests are always welcome to bring food onboard any of our flights. If you are traveling with children, be sure to pack extra snacks and beverages (subject to TSA rules), as well as diapers and changing essentials.

9. Handling Denied Boarding Guests with Fairness and Consistency in the Case of Oversales

When guests are denied boarding due to an overbooked flight, they will be compensated and treated fairly and consistently. Removing paying guests is the last resort. First, volunteers will be solicited. If there are no volunteers, then the last guest to check-in may need to be removed; however, Spirit reserves the right to determine the manner of priority per 14 C.F.R. Section 250.3. See Spirit's Contract of Carriage [section 9](#) for more information about denied boarding options and compensation.

Recommendations:

Guests can check [Spirit's website \(www.spirit.com\)](http://www.spirit.com) under HELP for specific airport information and recommended check-in times prior to leaving for the airport. Please arrive at the airport in plenty of time to check your bags. Please review Spirit's Contract of Carriage [sections 2.3](#) and [2.4](#) for further details related to check-in time limits.

10. Disclose Refund Policies, Travel Itinerary, Cancellation Policies, Frequent Flyer Rules, Aircraft Seating Configurations and Lavatory Availability

We will make every attempt to provide our guests with accurate, up-to-date information about their travel itineraries, our aircraft seating configurations (including lavatory availability), frequent flyer rules, and cancellation policies. Refund policies will also be disclosed to guests as required under 14 CFR Part 260.

Reservations Agents can relay cancellation and refund policies to guests upon request at the time of booking. These policies can also be found in [section 3.3](#) of Spirit's Contract of Carriage

[For the Terms and Conditions of the Free Spirit Program, please see https://content.spirit.com/Shared/en-us/Documents/FS_Terms_and_Conditions.pdf](https://content.spirit.com/Shared/en-us/Documents/FS_Terms_and_Conditions.pdf)

For Spirit's aircraft configuration information on (including lavatory availability), please see: <https://customersupport.spirit.com/hc/en-us/articles/202098616-Do-I-have-to-purchase-a-seat-assignment->

For aircraft disinfection requirements, [visit the Aviation Consumer Protection Division website at \(https://www.transportation.gov/airconsumer\)](https://www.transportation.gov/airconsumer) or send a letter to the mailing address below:

Aviation Consumer Protection Division, C-75
U.S. Department of Transportation
1200 Jersey Ave., S.E.
Washington, D.C. 20590

If you've purchased a reservation to Jamaica or Panama, please view the link below to [view the Insecticide Notice visit: https://www.transportation.gov/airconsumer/spray](https://www.transportation.gov/airconsumer/spray)

11. Notifying Consumers in a Timely Manner of Changes in Their Travel Itineraries

When a change occurs to your scheduled flight, we will make every effort to communicate the schedule change via telephone or e-mail in advance of the date of travel, if known. Otherwise, the information will be provided upon airport check-in and at the gate.

Recommendations:

When making your reservations, providing Spirit with your contact information (phone numbers and/or e-mail address) may help us reach you in the event that a delay or cancellation becomes apparent before you leave for the airport or while you are in transit. Enter the information when making a reservation online at [Spirit's website \(www.spirit.com\)](http://www.spirit.com), or give it to your Spirit Reservations Agent.

12. Ensure Responsiveness to Guest Complaints

When our guests have complaints, we will respond with the required information in a professional, courteous manner that reflects the high value we place on each guest.

1. [You may contact Spirit with your complaints, compliments or questions at www.spirit.com/help.](http://www.spirit.com/help)
2. In Writing:

Spirit Guest Relations
1731 Radiant Drive
Dania Beach, FL 33004

You will receive an initial acknowledgement of your communications within 30 days and a substantive reply within 60 days. Guest Relations can assist you with post-travel concerns as well. Please have your flight number and date(s) of travel handy when you contact us.

13. Identify the Services to Mitigate Guest Inconveniences Resulting from Cancellations and Misconnections

When our guests are inconvenienced either from a cancellation, misconnection or a delayed flight within our control, we will provide amenities and services to mitigate the inconvenience to the guest. In these situations, Spirit is committed to assist our guests to get them back on their way. See Spirit's Contract of Carriage section 8 for further information related to flight cancellations and misconnections.

In the case of a cancellation or misconnection, our staff will rebook guests on alternate Spirit flights, either direct to the destination or via connections through other airports to reach the guest's destination, at no additional cost. If there is a delay of two hours or more, we will rebook guests on alternate Spirit flights upon the guest's request at no additional cost.

In the process of rebooking on another Spirit flight, Spirit will provide overnight accommodation(s) or will reimburse reasonable costs of overnight accommodation(s) for non-local guests in the event of a controllable cancellation or a delay that extends overnight departing after the scheduled departure day. If the hotel accommodation does not include shuttle service to and from the airport, we will provide ground transportation to and from the hotel at no additional cost or we will honor reasonable requests for reimbursement.

With respect to delays of three hours or more or a cancellation due to causes within our control, Spirit will provide a meal voucher redeemable at any establishment that sells food and accepts the vouchers. However, if the cancellation or misconnection is because of severe weather, Air Traffic Control decisions or other issues or causes outside of Spirit's control, we do not offer such accommodations, though we will make reasonable efforts to provide information enabling guests to secure accommodations on their own.

Recommendations: Please carry necessity items like medication with you. Also, when traveling with children, please pack extra snacks and beverages as well as diapers and changing essentials in preparation for an unplanned event.

14. Military Benefits

1. DEFINITIONS

A. Service Member

We define a "service member" to mean current members of the military who are serving or may be called to serve. These members include:

- The U.S. Army, U.S. Navy, U.S. Air Force, U.S. Marines, U.S. Space Force, U.S. Coast Guard, National Guard, and U.S. Military Reserves with a current valid military ID;
- Cadets of the Air Force Academy, West Point, Naval Academy, Coast Guard Academy, and Merchant Marine Academy with a current valid military ID; and
- Commissioned Corps and Ready Reserve Corps of the U.S. Public Health Service and Commissioned Officers Corps of the National Oceanic and Atmospheric Administration's Officer Corps with current valid military ID.

B. Immediate Family Member

An “immediate family member” includes, but is not limited to, spouses, parents, siblings, and children.

C. Examples of Accepted Military Documentation

We may request supporting documentation, or “military documentation,” to verify the status of a service member, to verify the legitimacy of a service member being injured in the line of duty, to verify the legitimacy of a service member receiving military orders or directives, or for any other reason related to this section. Military documentation includes, but is not limited to, letters of deployment, notices from governing bodies to Spirit Airlines detailing the orders given to the service member, copies of government orders or directives, government issued identification cards, valid military IDs, personal identifiable information such as birth date, name, or the nature of relationship to the service member, and the name and contact information for the military hospital providing care.

A valid military ID for a service member under this section is the Armed Forces of the United States Geneva Conventions Identification Card. [For more information regarding military card types, click here.](#)

2. FARES

Spirit Airlines will offer the lowest available fare for immediate family members visiting service members injured in the line of duty with supporting military documentation. Acceptable military documentation under this section includes personal identifiable information such as birth date, name, or the nature of relationship to the service member, and the name and contact information for the military hospital providing care.

The fare amount under this section will be the lowest fare that was ever available to purchase a ticket on that specific flight. If Spirit Airlines ever offers a lower fare for that specific flight after the immediate family member purchased a ticket, we will provide a refund for the difference.

3. FLIGHT CANCELLATIONS AND FLIGHT MODIFICATIONS DUE TO MILITARY DUTY

If a service member, and any accompanying spouse and/or children, can no longer travel as scheduled due to receiving military orders, we will allow a modification or cancellation of their booking with supporting military documentation. Acceptable military documentation under this section includes letters of deployment and/or notices from governing bodies to Spirit Airlines detailing the orders given to the service member.

A refund for Spirit fares and optional services purchased will be allowed if the service member, or service member with accompanying spouse and/or children, wish to cancel their flight, and any applicable cancellation fees will be waived. Any refunds for flight cancellations under this section must be requested within one year of the flight departure date. Military orders must have been received by the service member prior to the requested departing flight date.

Modification fees will be waived if the service member, or service member with accompanying spouse and/or children, wish to change their flight, however they may be

responsible for any difference in airfare and optional services for the alternate requested date(s) or flight(s), as well as any difference in government taxes and fees.

4. BOARDING

We will offer service members with a valid military ID, along with their accompanying spouse and children, complimentary early boarding if the service member presents themselves during the pre-boarding process.

5. BAGGAGE

Service members, and any accompanying spouse or children, will receive one free standard carry-on bag and two free standard checked bags free of charge with valid military ID.

For service members, all bags must be added online in advance during booking, online check-in, or under the "My Trips" tab. When travelling alone, bags cannot be added at the airport ticket counter. Service members can validate their active-duty affiliation online during their Spirit.com booking using ID.ME, a third-party verification service. Simply click on the "verify" button at checkout via Spirit.com to validate your active-duty status and claim your free checked and carry-on bags.

For service members travelling with accompanying children and/or spouses, please present a valid military ID to an agent at our airport ticket counter and an agent will assist with adding baggage for your children and/or spouse. Your spouse must also present a valid ID at the airport ticket counter. Service members will still use ID.ME to add their own baggage in these cases as illustrated above.

All baggage must comply with our size and weight limits, and all other applicable baggage policies will apply. [For more information on baggage policies, please click here.](#)

[For more information regarding adding military bags to your reservation, please see our FAQ page.](#)